Mr Hacking

THE BIG BUSINESS BLUEPRINT

FOR '48

1/6/48

By Robert W. Gilbert
Attorney and Labor Union Consultant

(An Article in Two Instalments)

(Part One)

RECEIVED
JAN 19 1948

This week, as the 80th Congress convened on Capitol Hill for its second session, Organized Labor entered a new year--and an election year at that--faced with the obstacles and uncertainties of the dangerously restrictive and, in many respects, unconstitutional Taft-Hartley Act.

A review of the history of legislative developments since V-J Day in August of 1945, will demonstrate how monopoly forces have successfully carried out an anti-labor program. (This writer hopes that he will be forgiven for retelling this story by referring to his own published reports in California labor papers describing this "Big Steal Formula" as it emerged.)

The 79th Congress, 1st Session

Senator Joseph Ball of Minnesota, (Republican advocate of the N.A.M. anti-labor line and chairman of the Joint Committee on Labor-Management Relations created by the Taft-Hartley Act) fired the opening gun of the postwar attack on American trade unionism even before the Japanese surrendered.

On June 20, 1945, the Ball-Burton-Hatch "Industrial Peace" bill was introduced in the Senate of the United States--the brainchild of a so-called "Committee to Promote Industrial Peace" headed by ex-New Dealer Donald R. Richberg, who deserted his labor union clients for the large legal fees of national corporations.

series of three Richberg articles advocating this forerunner of the Taft-Hartley Act, (containing restrictions on union security and prohibiting so-called "unfair labor practices" by unions) was printed in the Congressional Record of July 17, 1945 at Senator Ball's request.

Early in September of 1945, California labor papers published my article warning that "The Ball-Burton-Hatch bill is a booby-trap placed in the path of Organized Labor on the road back to effective peace-time collective bargaining."

"The fight against Fascism in Europe and Asia has been won," the article read, "but the battle against the 'Ball-and-Chain' Bill is a continuation of the same struggle against bigoted and anti-democratic foes of free men and women."

At that early date it was my intention to expose the NAM program designed to create a pro-employer Federal labor policy under which "the protection of the National Labor Relations Act, and the Norris La-Guardia Anti-Injunction Law will be destroyed; the right to strike and picket will be restricted, and in place of free collective bargaining, Labor will face an endless chain of briefs, governmental hearings and court proceedings." I urged trade unionists to write their Congressmen demanding defeat of this bill "or any bill resembling its 'union-busting' provisions."

Another such article on September 28, 1945 told how "those Senators and Representatives who pull for the National Association of Manufacturers and other organized employer groups" were "seeking to cripple the enforcement machinery of the Wage and Hour Law." It urged that "The N.A.M. attack on the Fair Labor Standards Act must be met and dealt with in a decisive manner," -- that "a strong effort must be exerted by the ranks of labor to....offset the pressure of organized merchants and manufacturers."

By early November of 1945, I reported that "the industrialists through their lobbies in Washington are working overtime"---also that "there are many AFL leaders who privately feel that Congress is determined to pass some restrictive legislation."

When the seizure powers of the President under the War Labor Disputes Act (Smith-Connally Law) were employed on Thanksgiving eve to break a major strike for the third time since V-J Day, an article was written entitled "Preview of Coming Events?" It cautioned that "all unions....should immediately pass a resolution and send copies to all members of the Congressional delegation from their State "demanding repeal of the wartime labor act and defeat of the Ball-Burton-Hatch bill. The President's Labor-Management Conference which "met (on November 5th) to work out a method of voluntary peaceful settlement of labor disputes in the face of threatened restrictive legislation" was an "apparent failure."

When the President sought to head off the Ball-Burton-Hatch bill by an appeasing message admitting the need for some revision of the national labor policy, my comments tried to stress "the urgency of seeing to it that the Presidential message is not relied upon by the enemies of Labor as an excuse to shove through obnoxious legislation."

(Part Two)

The 79th Congress, 2d Session

"The Legislative Offensive - Labor's Best Defense" was published on January 18, 1946, describing the three-point campaign into which "both nationally and locally, the Merchants' and Manufacturers' Associations have poured millions of dollars.":

(1) "Introduction of vicious anti-labor bills in Congress and the state legislatures as well as initiative petitions."

(2) "Issuance of false propaganda to the effect that 'Labor is in the saddle now just as Big Business was in the 20's. Unions are rich and powerful and no longer need government protection from the disadvantages of unequal bargaining power.' "

(3) "Exploitation of...reconversion period...shortages to condemn Organized Labor for all strikes, and subject unions to bitter editorial criticism."

The conclusion was offered back in January, 1946 that---

> "Now that the postwar period has begun it is time to take stock...Now is the time to begin planning...Remember this year and 1948 are both election years. Labor should gain the political offensive, bearing that fact in mind."

A few weeks later, the House of Representatives passed the "Case Bill", a proposed labor disputes act with cooling-off periods, injunctions against picketing and boycotting, damage suits against unions, exclusion of supervisors from Wagner Act protection, and the like. Unionists were beseeched on February 15, 1946 in the California labor press to "Help plead Labor's case against the Case bill."

Extended hearings in the Senate Committee on Education and Labor were held all during February on the Case bill, followed by two weeks debate on the Senate

Then, the General Motors and Steel strike settlements seemed to provide a breathing spell during which the unions might gather their forces.

The Railroad strike of 1946 gave the NAM the opportunity it was waiting for to catch Labor off-guard. Congress was called into joint session, and the President was pressured into calling for strike-breaking powers.

Even after the Railroad strike was settled, the Senate passed the Case bill by almost 2 to 1 on May 25, 1946 and the House voted passage by an even heavier majority four days later.

The fifth article penned by this writer since V-J day sounding the danger signal over the legislative crisis ran in the Los Angeles Citizen under the headline "DRASTIC RESTRICTIVE BILLS INTRODUCED IN CONGRESS ON WAVE OF PLANNED HYSTERIA."

Shortly after President Truman vetoed the Case bill, another article was written describing "the political program of Big Business". Appearing about July 4, 1946, a month before the 79th Congress adjourned, it deplored the lack of "a strong liberal offensive" to oppose "these corporate manipulators of our economy and of our political life", declaring that "out of the NAM - fostered legislative program has come the Ball-Burton-Hatch bill and the infamous Case bill."

The 1946 general election neared, and on October 18, the challenge that "The 'Big Steal' Boys must not win another battle!" was expressed in these words:

> "The selfish business interests, flush with success over the defeat of price control, approach the coming elections with confidence, backed up by large campaign funds to support candidates committed to voting for restrictive anti-Labor legislation like the Case bill, passed by both houses at the last session, and vetoed by the President. The success or failure of this political aspect of their formula depends on the energy and effectiveness displayed by members of Organized Labor and other liberal forces in the next few weeks."

...awaiting retreat of liberal representatives at the December polls and the passage of the Taft-Hartley bill when Congress reconvened.

The 80th Congress is Launched

A month after the opening of the 80th Congress, the headline "Fair Labor Standards Act Bill Is Fought For" emphasized the fact that the Wage and Hour Law is faced "a deluge of hostile amendments."

On March 26, 1947, on the eve of a contemplated trip to Washington, I wrote that "the likelihood of enactment of repressive legislation in the 80th Congress grows stronger daily". Upon my return, a further report on "Collective Bargaining and the Congress", printed April 11, 1947, said in part:

> "...the forces of monopoly and private power...are holding sway on Capitol Hill. Like an army tumbler, the lobbyists of the N.A.M. and similar groups are gearing away at the foundations of our democratic form of government.
>
> "The only hope...is to mobilize all liberal forces in the land into a backbreach of indignation and political protest which will halt the anti-labor wave."

Three weeks later, the Citizen published the text of a speech before 4,000 AFL members at a Shrine auditorium rally against what had just emerged as the Taft and Hartley bills existing then:

> "The Big Business forces have succeeded so far in getting the Hartley bill passed in the House...A similar proposition has been recommended on the Senate side by the Taft Committee."

On May 14, 1947 the President signed the "Portal-to-Portal Act" cutting the heart out of the Wage and Hour Law.

Following another Washington trip early in June, I proposed "A Cure for for What Ails Congress", ---"a united and competent labor political organization

> ...[illegible] ...to do the job." The conclusion was inescapable that...

> ...[illegible] labor suffer the fall when it relaxed following the presidential veto of the "Case Bill" passed by the 79th Congress. The men who voted for the "Case Bill" and were returned to Washington in the 1946 elections and their fellow reactionaries who came back as freshmen in the House and Senate became convinced that union members were either unwilling or unable to unite for effective political action and so sent a friendly ear to the suggestions of the lobbyists."

By June 23, 1947, the legislative battle was over--Congress had voted overwhelmingly to override the Presidential veto--Taft-Hartley was law.

On July 15, 1947, I wrote that "the Taft-Hartley Act must be resisted by carefully planned legal defense now and hard-hitting political action in the 1948 elections."

The 80th Congress, 2d Session

Already House Labor Committee hearings are scheduled to set the stage for more drastic revisions of the Fair Labor Standards Act.

Congressman Hartley is laying the groundwork for adding still more restrictive provisions to the Labor-Management Relations Act of 1947. Senator Ball is back in the headlines with his Joint Committee on Labor-Management Relations contemplating other amendments to the Taft-Hartley Act.

The Big Business blueprint for 1948 is the same as it was for 1945, 1946, and 1947. Labor and other liberal groups cannot fail to meet that challenge this election year. The fate of our democratic way of life depends upon a liberal victory in 1948.

-30-30-30-

AN ACT

Chap.
H.B. 5

To declare the public policy of Virginia with respect to membership or non-membership in labor organizations as affecting the right to work; to make unlawful and to prohibit combinations or agreements which require membership in labor organizations as a condition of employment; to provide that membership in or payment of money to any labor organization shall not be necessary for employment; and to authorize suits for damages for violations of certain provisions thereof.

APPROVED JANUARY , 1947

Be it enacted by the General Assembly of Virginia:

Section 1. It is hereby declared to be the public policy of Virginia that the right of persons to work shall not be denied or abridged on account of membership or non-membership in any labor union or labor organization.

Section 2. Any agreement or combination between any employer and any labor union or labor organization whereby persons not members of such union or organization shall be denied the right to work for said employer, or whereby such membership is made a condition of employment or continuation of employment by such employer, or whereby any such union or organization acquires an employment monopoly in any enterprise, is hereby declared to be against public policy and an illegal combination or conspiracy.

Section 3. No person shall be required by an employer to become or remain a member of any labor union or labor organization as a condition of employment or continuation of employment by such employer.

Section 4. No person shall be required by an employer to abstain or refrain from membership in any labor union or labor organization as a condition of employment or continuation of employment.

Section 5. No employer shall require any person, as a condition of employment or continuation of employment, to pay any dues, fees or other charges of any kind to any labor union or labor organization.

Section 6. Any person who may be denied employment or be deprived of continuation of his employment in violation of sections 3, 4, or 5 or of one or more of such sections, shall be entitled to recover from such employer and from any other person, firm, corporation or association acting in concert with him by appropriate action in the courts of this Commonwealth such damages as he may have sustained by reason of such denial or deprivation of employment.

Section 7. The provisions of this act shall not apply to any lawful contract in force on the effective date hereof but they shall apply in all respects to contracts entered into thereafter and to any renewal or extension of an existing contract.

Section 8. If any one or more sections, clauses, sentences, or parts of this act shall for any reason be questioned in any court, and shall be adjudged unconstitutional or invalid, such judgment shall not effect, impair or invalidate the remaining provisions thereof but shall be confined in its operation to the specific provisions to be held un-

A BASIS FOR EUROPEAN UNITY

100 British Conservative and Labor MP's recently resolved that Europe should unite to co-ordinate its economic and defense needs

by Kingsley Martin

DEMOCRATIC Western Europe faces two great needs. The first is economic rehabilitation, an impossibility unless the Western European nations abandon their economic and political particularism. The second need is to avoid communism.

To the east, behind the Iron Curtain, lies a Soviet Union which considers that wars and revolutions are inevitable until the class struggle is ended. For that reason it has never abandoned the idea of world revolution, although its tactics have varied, according to circumstances, between active encouragement of revolutionary action and cooperation with capitalist states in the hope of avoiding a war for which the USSR is ill-prepared.

Across the Atlantic to the west lies the United States. American policy at present is an echo of many discordant voices. Clearest of all these, and most likely to carry through the elections in November, is the voice of American big business. To a European Socialist, its viewpoint appears to be that America is in a position to dominate the world; the twentieth century is to be the American century, dominated by American finance and airplanes, just as the nineteenth century was dominated by the British navy and the power of the pound sterling.

Caught in the middle is Western Europe, still containing some 200 million people and an industrial potential as great as that of the United States. Economic rehabilitation, the first great need of Western Europeans, has been given new impetus by the final passage of the Marshall Plan. Avoidance of communism, the second need, has received a boost from the Italian election returns, but the struggle is a continuing one.

Western European Socialists realize that communism would not be a development of their own type of socialism, but the imposition of Soviet ideas which care nothing for either the tradition of political freedom or the type of civilization which has spread from the Mediterranean basin in the past two thousand years.

The three countries most affected by the dilemma—economic rehabilitation without communism—are Italy, France and Britain.

In Italy, the recent elections emphatically turned down the Popular Front coalition. The larger Socialist group—the Nenni Socialists—with open eyes had decided to work with the Communists and believed that they were preserving working-class unity by doing so. The Saragat Socialists thought that the Nenni group was betraying the working class to Russia and stayed outside the Front. It is still too soon to say whether the Nenni Socialists will split further and join up with the Saragat group to make possible an independent Socialist Party. Although the Saragat Socialists polled seven percent of the vote, they seem destined to become the prisoners of de Gasperi.

In France the situation is different because, confronted with a similar dilemma, the majority of Socialists tend to prefer de Gaulle to the Communists. The present French government does not represent the Third Force. It is rather a government of bankers, able to hold the fort for the time being because the large, dominant group in France, passionately devoted to personal liberty, prefers any representative government to either of the extremes. The Communists would liquidate the French middle class; de Gaulle would subjugate the mass of trade unionists, three-fourths of whom are avowed Communists.

The position of Britain is different again, because there communism is an almost negligible force. Ideologically it is completely impossible for the British labor movement to share the point of view either of Russia or of America. Deep dismay was felt throughout the movement when Bevin, after taking office, showed that he was willing for England to become, in effect, a satellite of the United States.

The result was a considerable minority revolt in the Labor Party. This revolt, which was never designed to destroy the Labor Government, but only to change its foreign policy, spread far beyond the small group of "Keep Left" MP's. It corresponded to a heightened sentiment in the party that Britain should be the leader of a social-democratic middle way between the United States and the Soviet Union. It found expression in outspoken demands for an independent grouping of Western European nations, strong enough to resist American pressure, either financial or military, and also strong enough to prevent the Soviet penetration of Western Europe.

This is still the position, I believe, which most British people would prefer to hold. However, Britain's financial situation makes her dependent, willy-nilly, on the United States and Canada. Also, pressure by Communists, who oppose all Marshall Plan aid, has made a social-democratic union of Western Europe without an American guarantee seem an almost impossible objective.

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Its pretext for laying off some 200,000 workers is a "shortage" of steel due to the coal strike. Actually steel production fell very little during the coal strike and was nearly back to normal when the GM decision was announced. The auto workers' contract runs out this month. The lay-off is a transparent move to strengthen the company's bargaining position in current contract negotiations. Simultaneously, Chrysler withdrew a six-cent-an-hour wage offer.

Westinghouse is taking US Steel's lead; it is preparing for a showdown with the militant United Electrical Workers. The coal industry, dominated by Big Steel, also appears headed for another fight when the UMW contract expires June 30. The maritime workers' contracts run out this summer; a nationwide struggle is virtually sure in that industry.

These impending collisions are likely to result in defeat for the unions. President Gwylym Price of Westinghouse is effectively publicizing the canard that the UEW wage demands will "start the price spiral upward once again." Lewis' miners have no-strike injunctions hanging over their heads. And unemployment in the maritime industry has seriously undermined the bargaining position of the seafaring unions.

Most CIO unions will make demands based on the BLS budget, plus welfare funds and pensions. Any one of them would grab a 12.5 to 15-cent settlement. Offers will run from a token two or three cents to a top of nine cents. Differences will be irreconcilable and the "labor peace" Taft-Hartley Act will see the greatest labor unrest in years. The AFL craft unions, fragmented into thousands of small locals dealing with small businessmen on a local basis, will not at first feel the full force of industry's drive. But once the big unions are taken, the outposts can be quickly mopped up.

Walter Reuther and other prominent labor leaders are on record as saying that a reduction in the cost of living is a satisfactory substitute for increased wages. As a basic economic doctrine this is undoubtedly sound. But it must be kept in mind that the cost of living has increased by some seven percent since the last general wage increases in the spring and summer of 1947. For the US Steel formula to make any sense, wages should be brought into line *and then* the price line held. The cost of living is still rising, even if slowly, and most economists agree that the best hope is for a leveling off.

But the plateau we are already on leaves the purchasing power of a great bloc of the people too low and profits too high. Major union publications have conclusively demonstrated that a substantial general increase could be given with no general advance in prices. But that is not the plan. Industry's idea is to freeze the present pleasant imbalance, and if it cannot be done, labor demands will be blamed.

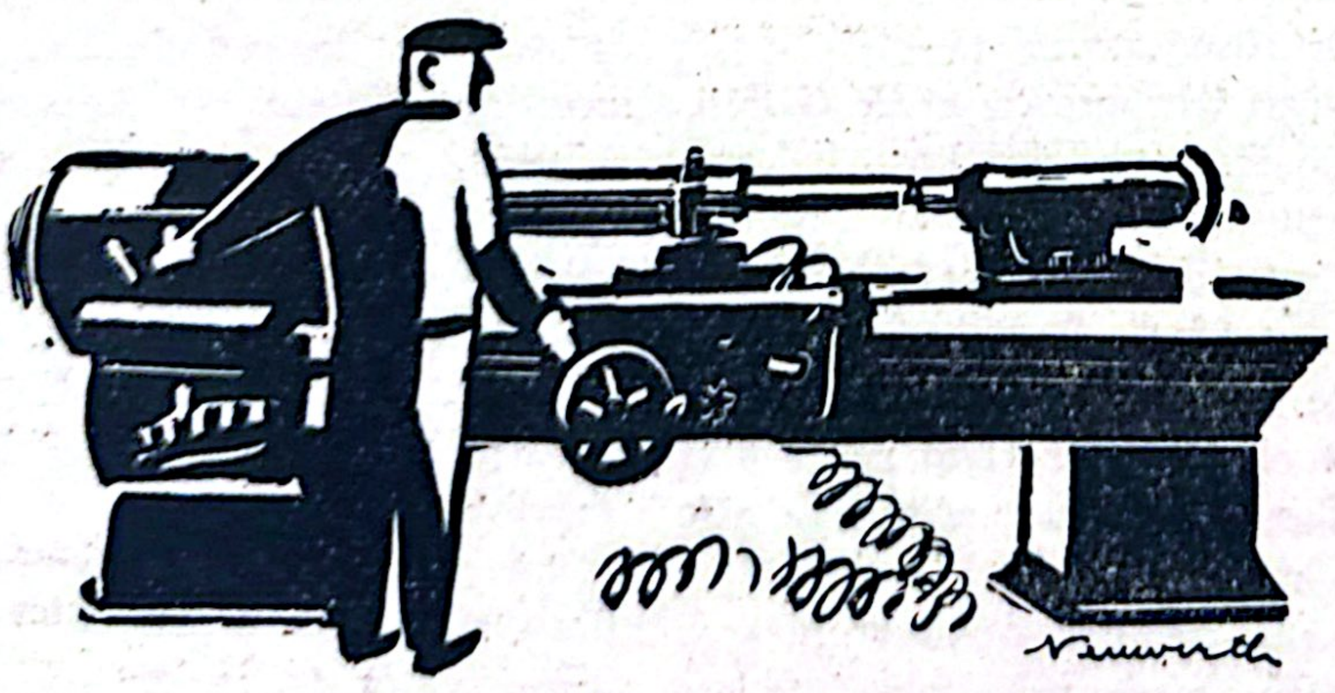
Contracts covering three-quarters of all CIO members end on or before June 30, and the NAM line is clear and hard. The compulsion to avoid strikes so as not to interrupt the golden avalanche of profits is wearing off. Most big firms salted away heavy reserves in 1947—reserves which could

cushion operational losses caused by strikes. And profits are running at such an exorbitant rate that loss of business for a few weeks will still leave as big a 1948 take as industry dares to pocket. And besides, the stakes are so high that industry is ready to gamble heavily.

For all this the Taft-Hartley Act is not entirely to blame. It, too, is a result, not a cause. A result of what? Simply a belief throughout management that the New Deal is dead and the pendulum is swinging to the Right. The Red hysteria, the crop of local anti-labor laws and the barrage of "American-way" advertising in press and radio are symptomatic of big business' feeling that the lines are drawn, at home and abroad, and now is the time to put on the heat.

In setting up its strategy for a full-scale attack on the unions in 1949, business is counting on a Republican in the White House and a GOP steamroller in Congress. Even more important in this operational plan are the 43 state-legislature elections and the 34 gubernatorial contests which will also be decided this fall. With "understanding" men in Washington, and plenty of friendly Governors around to lend a hand, business will be in an excellent position to finish the job it has so auspiciously begun.

In the next few years two generations of labor progress may well go down the drain.



LABOR TAKES A BEATING

US Steel and the "Big Four" packers spearhead the big push on industrial unions; so far, Big Business is winning the battles

by Jan Hasbrouck

INDUSTRIAL TRADE UNIONISM in the United States is slowly being choked to death.

The strangulation process has been going on for nearly a year. But it has received so little publicity that the general public, and in fact many union members, may not realize what is happening. Here are a few facts, generally soft-pedaled by the press, which may help bring the public up to date:

¶ The Industrial Union of Marine and Shipbuilding Workers (CIO) was bled white by a series of long strikes last year. Those strikes won the union nothing.

¶ The American Communications Association has returned to work after an unsuccessful three-month strike against International Telephone and Telegraph. The union got no increase in wages, still has no contract.

¶ The United Steelworkers (CIO) spent $300,000 on a 26-week strike against Consolidated Vultee's Nashville, Tennessee, plant. All they got was bloody heads from the local cops.

¶ A 12-week strike against Government Services, Inc., a concessionaire operating cafeterias and other services in government buildings in Washington, D. C., gained the workers nothing.

¶ The Food, Tobacco and Agricultural Workers of America (CIO), which won a substandard contract from Reynolds Tobacco Company last year after a bitter strike, has been told that the company will not deal with it when the contract expires this spring.

¶ In the South, textile workers have lost strike after strike. Most of the big firms have several plants, and as soon as one is organized, they close it and transfer production elsewhere. As a result of frequent reverses union membership has fallen, until today only

125,000 out of 625,000 workers are organized. Four Alabama locals recently went out of existence.

These are the more conspicuous milestones. But every CIO shop steward in the land will confirm the fact that it is becoming increasingly difficult to settle grievances, that little matters which used to be ironed out quickly on a low level are now being fought to the bitter end through all the procedures available. Local judges and police, always astute bandwagon riders, are right on the end of the bosses' telephones. Thirty-two states have little Taft-Hartley Acts, many of them stiffer than the original, and injunctions are a dime a dozen.

All this has been in the nature of a preliminary to the main battle, which was joined this spring when US Steel shaved prices slightly and then announced that it was granting no more wage increases.

The reason behind Big Steel's move is not difficult to trace. Since the death of the OPA, neither US Steel nor most of its competitors bothered much about fighting wage increases—heavy public demand for goods made it possible to pass on increased costs in higher prices. Instead, steel concentrated its efforts on an expensive campaign to convince the public that rising costs were due to rising wages.

But now the public's ability to absorb higher prices has reached the saturation point, and heavy consumer resistance is mounting. In the face of an alarming decline in mass purchasing power, Big Steel and the NAM fraternity have decided it is time to hold the line at the present advantageous spread between costs and profits. Their stand has the hearty encouragement of newspapers and radio, both of which have benefited heavily from industry's advertising and propaganda campaigns against the unions.

The United Steelworkers lost their battle before it began, because they had agreed to a no-strike clause in their contract last year. Their case is particularly infuriating because Big Steel's trifling reduction in prices comes on top of a record profit statement ($127 million for 1947). The ballyhooed price cuts also came within a few weeks of other increases which will offset the cuts several times over. It is serious loss of face for the steelworkers and CIO President Philip Murray.

A second crucial engagement is the strike of the United Packinghouse Workers against the Big Four of the meat trust, Armour, Swift, Cudahy and Wilson. The union has based its demands on the National Bureau of Labor Statistics index of a minimum American standard of living, and a Taft-Hartley presidential fact-finding board has ruled that this is a reasonable contention. Such a concept is anathema to industry, and every resource of the Big Four is being thrown into this decisive test case.

Phony back-to-work movements are being planted by press and radio. Foremen are making door-to-door canvasses cajoling and threatening workers, and violence on the picket lines is breaking out more frequently, with coöperative police getting rougher and rougher. Unless the whole US labor movement pitches in, the UPW will go under in a few weeks. A key bastion will have been lost by all American workers.

The giant automobile industry is next. General Motors has already instituted what amounts to a lock-out.

RECEIVED MAY 6 - 1948

HENRY WALLACE'S COLUMN

The Hushed-up Iranian Agreement

SECRETARY OF DEFENSE James Forrestal called representatives of press and radio to Washington recently to propose imposition of censorship on news which might affect "national security." The publishers and radio magnates replied firmly: "We do not believe that any type of censorship in peacetime is workable or desirable in the public interest."

Both the Administration and most of the press, however, have found it "workable and desirable" to keep the American people ignorant of one of the most dangerous steps taken by their government since the war's end. I refer to the attempts to suppress news about the signing of a far-reaching military agreement by the United States and Iran, October 6, 1947. Even after I had exposed the existence and nature of this agreement in speeches at New Haven and Chicago, April 3 and 10, the almost complete conspiracy of silence continued.

Iran, 9,000 miles from New York, lies at the doorstep of the Soviet Union, close to Baku oil. Long before the present agreement was arrived at, the dangers in such a move were ably pointed out by Walter Lippmann, who said, in *US War Aims*, 1944:

"No one questions our alliances with Canada and Mexico. But if Mexico made an alliance with the Soviet Union, everyone would know at once that the peace was troubled. If we made an alliance with Iran or with Rumania, all the world would have every right to think the worst of our intentions."

The 1947 agreement provides for practically unlimited powers of intervention in Iranian military affairs by a US military mission of undesignated size. In effect, it turns over Iran's entire military establishment to the US Army, transforming that politically and economically weak country into an American dependency.

The agreement is probably even more dangerous than our intervention in Greece. The 1921 Soviet-Iran Treaty entitles Soviet troops to occupy all of Iran if Moscow deems developments there to be a threat to Soviet security. The transformation of Iran into a military protectorate of the US might conceivably be so construed by Moscow. Yet this dangerous step was taken without the knowledge of the American or the Iranian people.

Americans first heard about this agreement in December, almost three months after it was signed, and then only because the UN Charter requires the filing with the organization of agreements among member states. It was filed without the normal publicity, and even yet, the UN's requirements for publication have not been met. However, some of its details were printed in the New York *Herald Tribune* of December 23, 1947.

Thereafter, charges and countercharges about the agreement were hurled back and forth between Moscow and Teheran. George V. Allen, American Ambassador in Iran, and even the State Department, interjected comments and denials, freely denying Soviet charges but saying nothing about the agreement itself. Privately, I am informed, American correspondents were advised by the State Department to play it down. Foreign correspondents at the UN, however, cabled the *Herald Tribune* story abroad, and the people of Iran heard about it through foreign radio broadcasts. On December 27, the alarmed Iranian War Minister denied the existence of the agreement! A new wave of terror has been launched in Iran against those who are demanding the publication of its text in that country.

In February, the State Department at last published the text of the agreement in its treaty series, but given this routine treatment, it was ignored by the press. When I spoke of the agreement and of the efforts to hush it up, on April 3, the press, as I have said, ignored my remarks. It also ignored a denial, made immediately after my talk by George Allen.

Allen insisted that the agreement was public property, explaining the silence of the press by declaring "there was no news in it"—this, of a document which is the heart of one of the most important diplomatic controversies in the world today. He said it had been "made public" by the UN, which anyone who has inquired at the UN knows to be false. He said further, "The agreement was merely an extension of one made in 1943." This earlier agreement, however, provided for a mission limited in numbers and confined to administrative matters.

Allen has since denied that he ever made the foregoing statement. But this denial is absurd; I have before me the full text of the International News Service story of which the preceding paragraph is an accurate summary.

News from Iran establishes the real motive for the efforts to suppress the facts about the agreement. This motive is the fear that publication of the terms, in Iran, will lead to its repudiation, much as the Anglo-Iraq military treaty was repudiated early this year.

The agreement is itself disturbing enough; but equally disturbing is the effort to keep the facts about it from getting the attention they deserve from the American press and public. We may well wonder what other reckless adventures in American diplomacy are being planned—and concealed—by the State Department on the ground that they "might affect" our security.

Henry A Wallace

Mr. Hasbrouck

New Republic

40 EAST 49 STREET NEW YORK 17 N Y

RELEASED FOR THURSDAY A.M. NEWSPAPERS, MAY 6, 1948

"LABOR TAKES A BEATING"
by
Jan Hasbrouck

Attached is an analysis by New Republic writer Jan Hasbrouck, of the present labor situation as evidenced by recent union strikes ending in the unions failing to receive their demands--or an approximation thereof.

Hasbrouck blames the Taft-Hartley Act in part for this situation, but places even more emphasis on the swing of the pendulum from left to right, the current red hysteria, and management's lining up solidly against anything faintly reminiscent of the New Deal.

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RECEIVED MAY 6 - 1948

STATEMENT BY THE EXECUTIVE COUNCIL
OF THE AMERICAN FEDERATION OF LABOR

- - - -

Aug. 24, -

The Executive Council will submit a detailed report to the forthcoming convention of the American Federation of Labor's increasingly difficult experiences under the Taft-Hartley Act during its first year of operation. At this time, however, the Executive Council calls attention to the following conclusions and observations based upon the record and the facts:

1. The Taft-Hartley Act has failed in its professed objective of reducing strikes and improving labor-management relations. In fact, the Act itself has been the direct cause of a large number of strikes that otherwise never would have occurred. A notable example is the strike of members of the International Typographical Union against the newspapers right here in Chicago. Both sides agree that this strike never would have taken place were it not for certain provisions of the Taft-Hartley Act which are at the root of the dispute.

2. What has happened to the claim of the National Association of Manufacturers that the Taft-Hartley Act constituted a new "Bill of Rights" for the nation's workers? The record fails to disclose a single instance of any benefit derived by wage-earners from the operations of this Act. On the contrary, many thousands of workers have been forced to continue on their jobs against their expressed will because of court injunctions and others have been required to act as strikebreakers against their fellow-unionists because of the law's ban against boycotts. Beyond this, many workers have been denied the benefits of unionism because the Act strengthened the hand of anti-union employers and intensified their efforts to resist organization of their employes.

3. Despite repeated statements by its sponsors to the contrary, the Act definitely has impaired labor's right to strike. This has been proved time and again in the court injunctions prohibiting strikes. Even more dangerous, perhaps, is the interpretation placed upon the provisions of the Act by the National Labor Relations Board. A glaring instance is a ruling handed down on May 26 by Trial Examiner Howard Myers in a case involving the International Typographical Union, from which we quote the following language

".....the right to require.....union men to work with non-union men, all other things being equal, is not derived from contracts. It is a public right established by the (Taft-Hartley) Act. To condone a contractual restriction of that right would be to defeat one of the very purposes for which the Wagner Act was amended by the (Taft-Hartley) Act."

Anyone at all familiar with the traditions of trade-unionism will see at a glance how this ruling, if upheld, strikes at the very heart of our movement.

4. The machinery of the National Labor Relations Board is on the point of breaking down due to the heavy case load imposed upon it by the Taft-Hartley Act. The Board is finding it impossible, as we predicted, eve

to process the union-shop elections required by the Act. It is estimated that it would take the NLRB eight years to conduct all the elections required in the building trades alone. Furthermore, the official records show that labor unions have won the union shop in more than 99 per cent of the elections held to date. This whole section of the law was a barefaced attempt to undermine the loyalty of workers to their unions and to destroy the security of those unions. It has failed ingloriously and it has wasted millions of dollars of the taxpayers' money.

5. There has been improper interference with the administration of the Act by the Legislative Branch of the Government. Repeatedly the Congressional "watchdog Committee" has cracked the whip over the NLRB to toughen up the Board's policies toward unions. House Labor sub-committees have even intervened in strikes in an effort to help employers. Senator Taft himself, the author of the Act, according to reports in the New York Times, summoned members of the legal staff of the NLRB to his office and in the presence of representatives of Chicago newspaper publishers, demanded that contempt of court proceedings be pressed against the International Typographical Union. Such tactics are completely improper and inexcusable.

6. The Act has abridged the political freedoms of American workers and seriously hampered their trade unions in seeking to conduct effective political activities in the current election campaign. Thus far the courts have not yet issued any definitive rulings on the Constitutionality of the Taft-Hartley Act provision which prohibits political expenditures by unions. In one case the Supreme Court merely held that the Act does not prohibit publication of political endorsements by union newspapers. In a second case a Federal District Judge upheld the Constitutionality of the ban on union political expenditures, but this was only the first round in a legal test which, unfortunately, cannot be brought before the Supreme Court in time to get a final decision before the November elections.

In conclusion, the Executive Council finds that labor's experience under the Taft-Hartley Act has confirmed our worst fears and has made it clear to us that this obnoxious law is even more dangerous than we anticipated. If a business recession should come in the near future, with even temporary unemployment, our trade unions will face the most bitter fight for existence in American history. In our considered judgment, the Taft-Hartley Act is cancerous to the core and cannot be cured by the minor surgery of amendment. It must be repealed in its entirety at the earliest possible opportunity.

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NEWS LETTER

National Conference of Union Labor Veterans

Volume 2 | OCTOBER - NOVEMBER, 1948 | No. 2

DEFEAT TAFT-HARTLEY SUPPORTERS!

A Year of Taft-Hartley, by JAMES A. MALLETTE, *Executive Secretary*

Beyond any question of doubt the Taft-Hartley Act has piled blow upon blow against organized labor from coast to coast.

It has cost labor unions thousands of its members.

It has served to break legitimate strikes called to correct intolerable conditions.

It has weakened unions considerably by its encouragement of red-baiting.

It has disrupted friendly relations and caused unnecessary friction between Labor and Management.

It has disrupted normal collective bargaining.

It has served to arouse and incite Veterans Organizations against Labor to the detriment of both, and to adopt anti-labor policies.

MORE SPECIFICALLY, THIS IS WHAT THE TAFT-HARTLEY ACT MEANS:

1. Your employer now can call meetings during working hours and speak against unions.

2. He can have foremen distribute letters attacking the union.

3. He can distribute sample ballots marked "NO UNION" prior to elections.

4. He can take part in an election campaign telling workers that a defeat for the union will be a vote of confidence in the company.

5. He can tell workers that the company is their bargaining agent and that the election results will effect their jobs and working conditions.

6. The *right to strike* has been restricted in every manner that legal ingenuity could devise.

7. Procedures of the NLRB have been hampered by widening powers of the courts, instituting technical rules at Board hearings, and a host of minor changes which *nullify* important provisions of the *Wagner Act*.

8. *Government by injunction* has been restored.

9. *The closed shop is outlawed.*

10. The protection against *company unions* organized and controlled by the employer is greatly weakened.

11. *Union security* is destroyed.

12. *Labor's bargaining power* has been weakened at a time when corporation profits are the largest in history.

13. Every legitimate union may be harrassed at least once a year by petitions instigated by employers seeking to certify the union. Another *union busting* device.

14. Compulsory check-off is barred.

15. Adjustment of grievances outside of the union is permitted to the detriment of both the member and the union.

16. Company Unions are re-established.

17. The right of free speech is restricted and unions are prevented from campaigning for or against Federal public officials.

18. Unions are now subject to various types of lawsuits and an obstinate employer can keep unions in courts almost constantly. Lawsuits against unions already are pyramiding into millions of dollars.

YES, UNION LABOR VETERANS, YOU, YOUR FAMILIES AND FRIENDS HAVE ANOTHER DUTY TO DO ON ELECTION DAY: THAT IS—VOTE AGAINST EVERY SENATOR AND CONGRESSMAN WHO SUPPORTED THE TAFT-HARTLEY ACT.

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JACK KROLL, DIRECTOR CIO-PAC, CONGRATULATES CONFERENCE

"The CIO-PAC welcomes the entrance of the Union Labor Veterans into the 1948 political campaign. We know that veterans have a great stake in this political battle and that they are good fighters in politics as well as in war.

"We fought the war for political and economic freedom. This includes job security. The Taft-Hartley Act is the first step into anti-labor legislation. You are concerned and you can do effective work in turning out a big vote for a liberal Congress. I congratulate you on your decision to participate."

IT IS THE WORST CONGRESS

By Wm. Green, Chairman, Labor's League for Political Education:

Throwing an even sharper light on the infamous 80th Congress was its no-housing program. In signing the phony housing bill passed by the special session, President Truman gave the clearest summary of the facts—he said:

"The new bill fails to make any provision for slum clearance housing and urban redevelopment. It fails to include any provision for special aids for farm housing. It includes only limited provision for research to bring down building costs.

"In short, the 80th Congress in enacting this bill has deliberately neglected those large groups of our people most in need of adequate housing—the people who are forced to live in disgraceful urban and rural slums."

The final damning comment on the special session came from a lobbyist's letter sent out by a real estate lobbying committee to real estate and building interests. In this letter the real estate lobby lists as its opponents: "The President of the United States, practically every veteran's organization, every labor union, the Catholic Church, the Protestant Church, Social Welfare groups, the Mayors of the Nation."

Then the letter goes on to say, "You have reason to rejoice that the 80th Con-

CONTINUED ON PAGE 4 - COLUMN 3

Federation of Labor be
Convention of the Brotherhood o
at the Cass-Tech Auditorium toda

NATIONAL CONFERENCE of UNION LABOR VETERANS

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OFFICIAL PUBLICATION

EDITORIAL

National Conference Union Labor Veterans has completed plans for immediate operation as a veterans' group of World War I and II veterans. The Executive Board reaffirmed the recent Convention resolutions, the two most important being repeal of the Taft-Hartley Law with defeat of its supporters, and the fight for passage of public housing legislation. In a joint Executive Board and Planning Committee session, October 16th, the final draft of a revamped constitution and by-laws was completed.

The National Conference Union Labor Veterans is composed of former American Legion members who broke with the Legion because membership was made ineffective due to the Legion's refusal to charter new labor posts. This resulted in representation at National and State Conventions being so small, that the proposals of the labor legionnaires seeking to offset the traditional attitude of the American Legion were ineffective.

Instead the measures advocated by bor legionnaires were labeled un-Amer- an and Red. The labor legionnaires came more and more dissatisfied with gion's claim to representation of union mbers, since they were excluded from rticipation in the Legion's formation olicies.

hese considerations motivated the ference to decide, at the last Conven- held in June, 1948, to reorganize withdraw support of existing Legion ies, and not permit the Legion to ue any claims of representing ican Labor.

It was decided to open the doors to non-legionnaires and to broaden its base so as to more effectively carry on the fight for all veterans' objectives such as adequate housing, full employment, civil rights, etc.

Consequently, the new constitution and by-laws provide for the admission of "any person who served in the United States Armed Forces or in the Armed Forces of its Allies during World War I and/or World War II, who is a citizen of the United States and is honorably discharged from service and who subscribes to the aims and purposes of the Conference."

Now, all you veterans—get into the fight! Unless you have filled out a new application with the new organization, you are not a member. So fill out the membership application in this Newsletter NOW and mail it in at once.

A MEMO TO VETERANS, THEIR FAMILIES AND FRIENDS

By GEORGE C. DANFIELD
Director, Political Education, NCULV.

The National Conference of Union Labor Veterans is doing everything humanly possible to elect into office only those Senators and Congressmen who by their record have supported the "INTEGRITY OF DEMOCRATIC ACTION (for public housing, slum clearance and farm housing).

Only in this way will the veterans, their families and friends find decent homes in which to live.

Had the leaders of the House of Representatives permitted democratic processes to function in the closing hours of the Special Session of Congress, there doubtless would have passed a long-term housing program for the good of all Americans, including public housing, slum clearance and farm housing.

Reverting to the iron fist of the late Uncle Joe Cannon who ruled the House for 25 years, today's leadership—Speaker Martin (R., Mass.), Majority Leader Halleck (R., Ind.), Rules Committee Chairman Allen (R., Ill.), and Banking and Currency Committee Chairman Wolcott (R., Mich.)—refused to permit a vote on public housing, farm housing and slum clearance, in the House of Representatives. They also proved themselves the masters of the Senate, which body passed a sadly watered-down McCarthy (R., Wis.) bill, only because Mr. Wolcott stated that he would not permit the House to participate in a joint Senate-House conference on the over-all measure. Even Senator Taft (R., O.) capitulated to that pressure and voted for the McCarthy measure, against the bill recommended by the Senate Committee on Banking and Currency containing the full substance of the Taft-Ellender-Wagner bill. There were many bleeding hearts on the part of those who trailed along with the McCarthys and the Wolcotts, they bled for the poor slum dweller, but wanted to be "practical." They were practical for the moment, those families in the greatest need were forgotten once more.

The leadership of the House demonstrated clearly that it feels a responsibility first to special privilege, the real estate lobby, the makers of campaign contributions. As for the people — let them live in hotels if they don't like their present quarters.

Appreciation to Mr. Wolcott??

The little man with the big stick from Michigan succeeded by his refusal, with the help of Martin and Halleck, to permit the House of Representatives to vote on one of the most vital issues of the day, in putting public housing, slum clearance, and farm housing at the very tp of the "big time" social and political issues. He managed to arouse the resentment of the American people toward "gag" rule, as it has not been aroused since the days of Cannon. He cemented the support of the great metropolitan press all over the nation for a housing program that will aid all of the people. He has presented candidates for Congress, both House and Senate, both Democrats and Republicans, with an issue that can make or break them in Congressional elections.

Mr. Wolcott has assured a resounding report from the people on the housing issue next November, that even he and his gag-rule cronies will not be able to duck. We may be very sure that housing will be the Number One Issue on the agenda of the 81st Congress. Thank you, Mr. Wolcott!

And Now To Work

There is no time to spare in recriminations. Friends of public housing have their jobs cut out for them. When we lost the recent battle, enemies of an overall housing program made the tactical error of setting up a situation where we are certain to win the war.

It is more important than ever before, that voters in every Congressional district in America smoke out all candidates on this issue. Every labor and veterans' organization, every church group, every citizens' organization, every private social agency, will wish to combine their forces in getting at the facts.

With the possible exception of a few members of the 80th Congress, you will find each horrified at slum conditions both urban and rural. Find out how they intend to meet that problem, if you can, and be ready to answer them.

It would have been a splendid thing if all citizens in America could have been in the Senate gallery at 1 o'clock on Friday afternoon, August 6, and watched

CONTINUED ON PAGE 3 - COLUMN 3

HITLER'S GHOST - SECOND LARGEST U. S. LOBBY

You are the target of the second largest lobby in Washington . . . the notorious Committee for Constitutional Government. This Committee which is the closest thing to organized fascism existing in the U. S. today spent almost a half million dollars last year and a quarter of a million dollars in the first half of this year to influence Congress to pick your pockets and destroy your freedom.

Don't think this is a committee of harmless crackpots. For the last two years the Committee's aim has been to shift the tax burden onto the poor and to destroy free trade unions. This Congress slapped you with the Taft-Hartley Act and passed the soak-the-poor tax bill, so you can see this Committee is getting results.

The Committee for Constitutional Government is run by such well known reactionaries and former pro-Nazis as Frank Gannett, Edward A. Rumely, Merwin K. Hart, Joe Kamp, Norman Vincent Peale, former Congressman Pettengill, and Upton Close.

Labor's League for Political Education and CIO-PAC is the special target for this vicious committee this year. Recently the Committee sent out to its select mailing list enrollment blanks to enlist "100,00 Paul Reveres" each to contribute "$10 to $490" to fight LLPE, PAC, and re-elect a reactionary Congress in November. The appeal further states, "Will you permit John Lewis, Phil Murray, William Green and their associate bosses of monopolistic unions to purge from public life those patriotic men in Congress who regardless of party, had the courage to stand up for your freedom and prosperity?"

This committee has clearly and repeatedly stated that its objective is to outlaw trade unions as such and to make unions criminal conspiracies the same as they were before 1842. The committee further deplores the fact that "existing laws favor tenants as against landlords; favor employees as against employers; favor the poor as against the rich."

However, it is pointed out to their "Paul Reveres" that a well organized minority can control elections since a majority of potential voters don't bother to vote. The moral of their little story is that if Congress is elected by their special privilege minority, then Congress will scoff at the needs of the majority of our people . . . just what the committee wants.

To be forewarned is to be forearmed. Our enemies may have barrels full of money to buy propagandists, but we have the votes. Any working man who fails to cast his vote on election day betrays himself and his union . . . he is the ready helpmate of the vicious COMMITTEE FOR CONSTITUTIONAL GOVERNMENT.

ON THE HOUSING FRONT

Don't let anyone tell you that the Special Session of Congress didn't consider a housing bill. The 80th Congress may not have believed in housing for ALL but a bill was introduced for ONE . . . and on a lavish scale.

H. R. 7069 was introduced to provide $2,500,000 to build a little White House for the Vice President of the United States. We agree that the Vice President deserves a Washington residence in keeping with the dignity of his office, but how about a few million homes under $10,000 in keeping with the dignity of American workingmen?

An unpublicized section in the phony housing bill passed at the special session of Congress at the request of the Real Estate lobby is a clause which compels a rise in the rate of interest paid on G.I. home loans. Congress increased the interest for veterans from 4% to 4½% annually.

On a ten thousand dollar G.I. home loan the increased cost to the veteran as a result of the 80th Congress action would be $648 over the 20 year mortgage period. In other words instead of paying $4544 in interest over the 20 years the cost will be $5192.

VETERANS can tell their families and friends how the 80th Congress LET DOWN not only the veteran, but every person with a housing problem. Look up the record of your Senators and Congressmen and find out if they voted for the McCARTHY SUBSTITUTE HOUSING BILL, AND BOWED TO THE HOUSE "GAG" RULE against public housing, farm housing and slum clearance as contained in the full TAFT-ELLENDER-WAGNER long range housing bill.

See to it that they vote on election day against these Congressmen and Senators and elect only those pledged to a real housing program for all the people and the repeal of the infamous Taft-Hartley Act.

The Truth From Michigan

At a recent House-Senate labor subcommittee hearing in Dayton, Ohio, Representative Clare Hoffman, anti-labor Republican from Michigan said:

"We passed the Taft-Hartley law at the insistence of business and industry."

"ALL THAT HARMS LABOR IS TREASON TO AMERICA."—*Abraham Lincoln.*

FROM THE NEW CONSTITUTION

ARTICLE II

Purposes

The purposes of this organization are:

1. To uphold and defend the Constitution of the United States.

2. To unite the influence and endeavors of Organized Labor and all Veterans so as to further the best interests of all the American people.

3. To provide social, economic, and legislative measures for the welfare of the Community, State, and Nation.

4. To establish Labor-Veterans Councils in every City, County, State and Region.

5. To counteract and oppost any attempt to misuse the name, prestige, or paraphernalia of any Labor Union or Veterans Organization against labor.

6. To maintain vigilance against legislation and public practices which are anti-labor, anti-social, or discriminatory and harmful to the best interest of the American people.

7. To foster the tradition and ideals of American democracy.

ARTICLE IV

Membership

Section 1. Any person who served in the United States Armed Forces or in the armed forces of its allies during World War I and/or World War II, who is a citizen of the United States and is honorably discharged from service and who subscribes to the aims and purposes of the Conference shall be eligible for membership.

On your toes Veterans! The Big Membership Drive is on. Every reader sign the application. Every member get a member.

CONTINUED FROM PAGE 2

the vote in the Senate. The question at stake was the McCarthy substitute for the committee-approved TEW bill. The galleries were packed, at least 100 members of the House lined the chamber walls, the press was there in force—the issue was public housing, slum clearance and farm housing which had been approved twice by the Senate. The House leadership was present in spirit, if not in person, with a gun at the Senate's head. Doorkeepers went through the packed galleries warning against demonstrations. There was the picture.

LOOK ELSEWHERE IN THIS NEWS-LETTER FOR LIST OF THOSE SENATORS AND CONGRESSMEN WHO VOTED AGAINST YOUR CHANCES FOR DECENT HOUSING.

TO ALL VETERANS!

Here are the Senators and Congressmen who voted against you either on the Taft-Hartley law or the Taft-Ellender-Wagner Housing Bill in these key states.

California

Senator: Knowland.
Congressmen:

Allen 7
Anderson 8
Bradley 18
Bramblett 11
Elliott 10
Engle 2
Fletcher 23
Gearhart 9
Hinshaw 20
Jackson 16
Johnson 3
Lea 1
McDonough ...15
Nixon 12
Phillips 22
Poulson 13

Illinois

Senator: Brooks.
Congressmen:

Allen 13
Arends 17
Busbey 3
Chiperfield 15
Church 10
Clippinger 24
Dirksen 16
Jenison 18
Johnson 14
Mason 12
McMillen 19
Reed 11
Simpson 20
Stratton .....AL
Twyman 9
Vail 2
Vursell 23

Indiana

Senators: Capehart, Jenner.
Congressmen:

Gillie 4
Grant 3
Halleck 2
Harness 5
Johnson 6
Landis 7
Mitchell 8
Wilson 9

Michigan

Senators: Ferguson, Vandenberg.
Congressmen:

Blackney 6
Coffin 13
Crawford 8
Dondero 17
Engel 9
Hoffman 4
Jonkman 5
Michener 2
Shafer 3
Wolcott 7
Woodruff 10
Youngblood ...14

Minnesota

Senators: Ball, Thye.
Congressmen:

Andersen
Andresen
Devitt
Hagen
Judd
Knutson
MacKinnon
O'Hara

New York

Senator: Ives.
Congressmen:

Andrews 42
Buck 16
Cole 39
Coudert 17
Elsaesser 43
Gamble 28
Gwinn 27
Hall, E. A.....37
Hall, L. W..... 2
Kearney 31
Keating 40
Kilburn 34
Latham 3
Le Fevre 30
Macy 1
McMahon 4
Nodar 6
Potts 26
Reed 45
Riehlman 36
Ross 5
St. George.....29
Taber 38
Taylor 33
Wadsworth 41

Ohio

Senators: Bricker, Taft.
Congressmen:

Bender .....AL
Bolton 22
Brehm 11
Brown 7
Burke 8
Carson 16
Clevenger 5
Elston 1
Griffiths 15
Hess 2
Jenkins 10
Lewis 18
McCowen 6
McGregor 17
Ramey 9
Vorys 12
Weichel 13

Pennsylvania

Senator: Martin.
Congressmen:

Chadwick 7
Corbett 30
Crow 23
Dague 9
Fenton 12
Fulton 31
Gallagher 1
Gavin 19
Gillette 14
Graham 25
Gross 21
Jenkins 11
Kearns 28
Kunkel 18
Maloney 4
McConnell 16
McDowell 29
McGarvey 2
Muhlenberg ...13
Rich 15
Sarbacher 5
Scoblick 10
Scott, Hardie.. 3
Scott, Hugh ... 6
Simpson 17
Tibbott 26

It Must Be the Same Family

In the last two Congressional sessions Senator Cain of Washington, anti-labor Republican, was the chief spokesman for the Real Estate lobby. Cain can be credited with a victory in preventing veterons housing legislation, slum housing legislation, rural housing legislation, low-cost housing legislation and low-rental housing legislation from passing.

Many a citizen and many a veteran will spend an extra two years in barracks and huts because of Cain's activities.

After studying Cain's voting record we had an urge to read the Bible—Genesis, Chapter 4, Verse 8: "And it came to pass, when they were in the field, that Cain rose up against Abel his brother and slew him." Verse 9: "and God said unto Cain where is Abel thy brother. and he said, I know not; AM I MY BROTHER'S KEEPER?"

Check and Double Check!

Have you contributed your BUCK into your Union's Political War Chest, AFL's LLforPE or the CIO's PAC???

Did You Buy a Car With Your Tax Cut?

What did you do with your tax cut?

It must have been very large because the newspapers said that the 80th Congress did you a very great favor with that tax cut.

Then we find that Charles B. Skouras. a theatre and movie executive, received a tax cut of $64,000 a year. Harry Bracy of the Kroger grocery chain received a tax cut of $40,000 a year. Charles E. Wilson, president of General Motors gets a cut of $33,600 a year. C. W. Deyo. Woolworth store executive, gets a tax cut of $33,200 a year. Then, there is William R. Hearst, chain newspaper publisher who gets a tax cut of $31,500 a year.

How does your tax cut stack up?

A BOOK WORTH BUYING

THE INSIDE STORY OF THE LEGION, by Justin Gray, Former Assistant Director National Americanism Commission of The American Legion, and member of our Conference.

This book contains much of the history of our Conference in its fight for democratic principles within the Legion.

Fill in the slip on last page for your copy.

REMIND YOUR FRIENDS ON ELECTION DAY, TO BE AT THE POLLS AND HAVE THEIR SAY.

CONTINUED FROM PAGE 1

gress was courageous enough to withstand this pressure." This letter raises, of course, the 64 dollar question. What influence and how much of it caused Congress to say no to all of these groups who favored a real housing program? What influence was it that made these Congressional mice rear up and spit in the face of every veteran's organization—all of organized labor, the Jewish welfare groups, Catholic Church groups, Protestant Church groups, independent Social Welfare groups, League of Women Voters and all organizations interested in a housing program including all the Mayors of the United States? Perhaps a Grand Jury could find out. So far, one has not been called.

Veterans and their organizations are one of the groups the real estate lobby defeated by its rigid, air tight, iron clad control of the 80th Congress.

To The National Conference of Union Labor Veterans,
5732 W. Pershing Road
Cicero 50, Illinois

I enclose $..... Please send an advance copy of "The Inside Story of the Legion" and

☐ One membership in the National Conference at $3.00 plus $2.00 for the book—a total of $5.00.
☐ One renewal of membership in the National Conference at $3.00 plus $2.00 for the book—total of $5.00.
☐ One subscription to the Newsletter at $3.00 plus $2.00 for the book—a total of $5.00.
☐ Advance copy of the book at $3.00.

Name .....

Address .....

Veteran's Organization.....

Union Organization.....

☐ One Membership $3.00.

[illegible] Federation of Labor
[illegible] and Publicity Service

For release to weekly newspapers, Sept. 10, 1948

Detroit, Sept.12 - Following up the text of address delivered by Daughtons William Green of the American Federation of Labor before the Ninth Biennial Convention of the Daughters of Standing Bear Indians at the Book-Cadillac Hotel today...

It is equally becoming apparent that the Taft-Hartley Act constitutes one of the outstanding issues in the national political campaign. Less than a week ago, President Truman in a Labor Day address in this city, demanded the outright repeal of that obnoxious law. The following day, Harold E. Stassen, speaking for the Republican Party, replied to Mr. Truman by defending the Taft-Hartley Act in another address here in Detroit.

Organized labor is gratified over the development of this debate and hopes that it will be continued throughout the campaign. For the Taft-Hartley Act is a real issue to the millions of working men and women of our country who are suffering under its oppressions. It would be unfortunate if candidates for public office or political parties were permitted to evade this issue and give it the silent treatment. American workers and American voters want to know the attitude of all who aspire to public office on the Taft-Hartley issue and they have the right to know before they vote.

I am certain that the eight million members of the American Federation of Labor studied with great interest the conflicting views expressed by President Truman and Governor Stassen on the Taft-Hartley Act in this city. I am equally certain that they were deeply disappointed by the position taken by Governor Stassen.

From the American Federation of Labor
Information and Publicity Service

FOR RELEASE IN MORNING NEWSPAPERS, SEPT. 13, 1948

Detroit, Sept. 12 -- Following is the text of address delivered by President William Green of the American Federation of Labor before the State Electrical Convention of the International Brotherhood of Electrical Workers today:--

It is rapidly becoming apparent that the Taft-Hartley Act constitutes one of the principal issues in the national political campaign. Less than a week ago, President Truman in a Labor Day address in this city, denounced the outright repeal of that obnoxious law. The following day, Harold E. Stassen, speaking for the Republican Party, replied to Mr. Truman by defending the Taft-Hartley Act in another address here in Detroit.

Organized labor is gratified over the development of this debate and hopes that it will be continued throughout the campaign. For the Taft-Hartley Act is a real issue to the millions of working men and women of our country who are suffering under its oppressions. It would be unfortunate if candidates for public office or political parties were permitted to evade this issue and give it the silent treatment. American workers and American voters want to know the attitude of all who aspire to public office on the Taft-Hartley issue and they have the right to know before they vote.

I am certain that the eight million members of the American Federation of Labor studied with great interest the conflicting views expressed by President Truman and Governor Stassen on the Taft-Hartley Act in this city. I am equally certain that they were deeply disappointed by the position taken by Governor Stassen.

His facts were wrong, his figures were misleading and his conclusions were entirely off base.

I propose today to take up the points Mr. Stassen made in favor of the Taft-Hartley Act and to disprove them. I propose to mention several additional points which Mr. Stassen conveniently ignored, perhaps because they expose the Taft-Hartley Act in its true, ugly light.

First, Mr. Stassen contended that under the Taft-Hartley Act labor has negotiated the best wage contracts in history. Of course, Mr. Stassen forgets that the Taft-Hartley Act has nothing whatever to do with the negotiation of wage rates. He also forgets that present-day wages are being paid in inflation dollars, worth less than half pre-war dollars in purchasing power. It is well worth while emphasizing right here that the same team of Republican and reactionary Southern Democrats who joined together to enact the Taft-Hartley Act over the President's veto, collaborated again and again to prevent Congress from taking any effective action to halt inflation and bring down the cost of living. As a result, although wage rates appear to be high today, the take-home pay of American workers buys less at the grocery store than it did in 1944 before the Taft-Hartley Act was passed.

Secondly, Mr. Stassen maintained that wage contracts are being negotiated with fewer strikes and wage losses due to strikes than in 1946.

Why do you suppose that Mr. Stassen chose 1946 as the basis of his comparison? Of course, he might say that 1946 was the year before the Taft-Hartley Act was passed. But if he wants to be fair with the American people and does not want to mislead them, he should also make it clear that 1946 was the year of reconversion, the year when our feverish war-time production was suddenly stopped in its tracks by victory and therefore, the year of fundamental industrial upset. Workers abruptly lost their war-time overtime and sought compensating increases in wage rates which were denied to them during the war by the stabilization program. When industry resisted, widespread strikes took place. The same thing happened after World War I. But once these adjustments were made and completed, America should have been able to look forward to a long period of labor-management

peace, such as prevailed after World War I. Have we attained that under the Taft-Hartley Act? One glance at the daily newspapers is enough to dispel any such idea. When I left Washington the headlines proclaimed that 215,000 workers were out on strike in the nation. Does that indicate that the Taft-Hartley Act has promoted peace and better labor-management relations?

If Mr. Stassen had looked for the truth instead of trying to capitalize for political purposes on an unfair basis of comparison, he would have found from the records that there were just as many strikes this year under the Taft-Hartley Act as there were in 1939, a comparable peace-time year. However, there were far fewer persons employed in 1939 than in the record-high peace production of today, so the Taft-Hartley era suffers by the comparison.

Certainly there is no factual basis for the claim that the Taft-Hartley Act has brought about labor-management peace. On the contrary, there are innumerable cases of strikes during the past year which were caused for no other reason than the Taft-Hartley Act's own provisions. For instance, the printers' strikes in Chicago and other cities resulted directly from the disruption of century-old union-security standards by the provision of the Taft-Hartley Act. This is admitted by both the publishers and the union.

Let's get on to some of Mr. Stassen's other points. In one breath he asks "why does he,(the President), complain about a law which provides for eighty days to settle a dispute affecting the whole country without a strike?" In the next breath, he adds "why does he complain about a law which does not take away the authority to strike?"

Clearly those two claims of the former Governor of Minnesota are self-contradictory. Anyone familiar with labor-management relations knows that if a law can prevent a strike for eighty days it does prevent, for all practical purposes, any effective strike. Nor is that all. Mr. Stassen again conveniently forgets to mention the injunction provisions of the Taft-Hartley Act under which strikes can be prevented or halted by the mere issuance of a court order.

Time and again during the past year, workers smarting against a sense of injustice have been forced to work against their will because of injunctions issued by the courts under the Taft-Hartley Act. What choice did they have? They could either continue on the job under conditions which they resented or defy the courts and risk being sentenced to jail. This alternative of "work or jail" does not square with the principles of American freedom. It constitutes involuntary servitude.

A generation ago, the abuse of the writ of injunction became so acute that a storm of public protest was aroused and Congress in 1932 passed the Norris-LaGuardia Act, forbidding the Federal Courts to issue injunctions in labor disputes. For the next fifteen years labor enjoyed freedom of contract and free collective bargaining, which enabled it to achieve great progress in improving working conditions and raising the standards of the nation's workers. Then, a year ago, the Taft-Hartley Act was passed restoring the evils of government by injunction.

A shocking example of the sweeping terms of some of these injunctions is provided in a case now pending before the Federal Court in Indiana. In that case, attorneys for the National Labor Relations Board, acting in behalf of the Government of the United States, have asked the court for a super-injunction which would forbid the union to pay strike benefits to thousands of men who quit their jobs in Chicago. That means an attempt by our Government to break a strike by starving out the wives and children of the strikers. Such cruel and inhuman tactics are not only permitted but required by the Taft-Hartley Act, according to the Government lawyers.

It was for these reasons that we branded the Taft-Hartley Act a "slave-labor law" when it was first introduced in Congress. Our fears in that respect have been fully confirmed. To all intents and purposes, the basic guarantee against involuntary servitude, contained in the Thirteenth Amerndment to the Constitution

and obtained only after a devastating Civil War, have been wiped out overnight by the Taft-Hartley Act.

I say to Mr. Dirksen that he will forfeit all claim to being considered a liberal if he persists in defending the indefensible Taft-Hartley Law. He said in his speech that he believes it requires some amendments. Apparently, Mr. Dirksen believes you can cure a cancer by tinkering with it. Or perhaps, he believes he can lure political support from liberals by holding out some half-way promise of mollifying amendments to the Taft-Hartley Act. However, the workers of this country know better. They know that Mr. Dirksen exerts no influence over the Congressional leaders of his own country. They know that these Congressional leaders, who were responsible in the first place for the enactment of the Taft-Hartley Law, are talking about an entirely different kind of amendments -- amendments which would subject labor to prosecution under the anti-trust laws, amendments which would outlaw strikes as conspiracies in restraint of trade, amendments which would crack down even harder on the trade union movement. There is not the slightest question in the world but that they will seek to adopt such amendments if they are returned to power in the next Congress.

It behooves the working men and women of our country, therefore, to weigh carefully the platforms and the policies of both major parties and the campaign promises of all candidates for public office in this national election year.

No candidate who defends the Taft-Hartley Act or favors its retention on the statute books deserves the support or the votes of the American voters. Certainly any worker who votes for such a candidate is voting against his own interests and against the interests of a free America.

This year more than any other, it is of vital importance that every worker registers and votes. He should also see to it that members of his family and his friends who can qualify to vote should do likewise. The 80th Congress, which enacted the Taft-Hartley Law, which placed property rights above human needs, and which failed the people on such vital issues as high prices, decent housing, higher minimum wages, social security improvements and an effective and truly American civil rights program, was elected in 1946 by only one-third of the qualified voters in the nation. If only one-third of the American voters go to the polls again this year, we can expect the same kind of Congress to be re-elected. But if all our people make certain to register and vote on November 2, we can elect a new, liberal Congress and give it a clear mandate for progress. To prove that American democracy can work for the benefit of the American people, the American people themselves must put their democracy to work by voting.

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F & PR
9/27/48

PUBLICITY DIVISION
DEMOCRATIC NATIONAL COMMITTEE
Room 5411-Penn
1700 Penn Avenue, N.W.
Washington, D. C.
New York Headquarters - Biltmore Hotel

FOR RELEASE IN P.M. PAPERS
Tuesday, September 28, 1948

"One of the chief Republican contributions to national unity in the field of labor seems to be taking all sides of every labor issue," George M. Harrison, head of the Labor Division of the Democratic National Committee, said today.

Harrison, who is also chairman of the Labor League for Truman-Barkley, cited recent statements by Governor Earl Warren, Senator Joseph Ball and Congressman Fred A. Hartley as typical of Republican inconsistency.

"At Detroit, in a labor speech addressed to a limousine and mink coat audience, Governor Warren mildly defended the Taft-Hartley Act and added that 'if any of its provisions are found to be oppressive, unnecessary or unworkable' the law would be amended," Harrison said.

"On the same evening Senator Ball, a co-author of the Taft-Hartley Act, said that strikes on the West Coast indicate that more labor legislation might be needed.

"It was plain that Ball meant that further restrictions to handicap union members and to aid management would be passed if the next Congress were to be Republican-controlled.

"Meantime Congressman Hartley proudly came up with an entirely new approach to the Republican effort to hamstring working people.

"He urged repeal of the Walsh-Healey Act, which provides that concerns which have contracts with the federal government must pay the prevailing wage in that industry. Congressman Hartley wants to make the present minimum wage, which the GOP Congress refused to increase, the prevailing wage. 40 cents an hour for all workers is apparently the new Republican goal.

"Governor Warren's soft words intended to make working people think the Republicans stand for fair labor practices will not persuade many workers nor alarm the big business contributors to the Dewey-Warren campaign. Both groups know that Warren couldn't keep that promise if he wanted to.

"On the other hand when Ball and Hartley promise further blows against working people, workers take real alarm and anti-labor big business groups take great encouragement. Both know what Republicans of the school of Ball and Hartley have produced in the past and will produce again if the Republicans win in November.

"Meantime Governor Dewey, who is running with Warren, is supporting Ball and is a friend of Hartley as well, has kept his own views on labor problems to himself. Presumably at some future date he will make a ringing speech in favor of the eight-hour day and against rainy Sundays.

"I am sure such a speech will be fluent and facile and highly conducive to national unity. But what working people want to hear from Governor Dewey is how he feels about the Tafts and Hartleys and Joe Balls of the GOP and why he kept silent when they passed anti-labor legislation in the 80th Congress."

"""""

LABOR

U. S. DEPARTMENT OF LABOR

LABOR PRESS SERVICE
(Week of October 4, 1948)

(You have mat of Secretary of Labor Tobin)

Upon Receipt

FOR RELEASE:

SECRETARY TOBIN DEFENDS WALSH-HEALEY ACT PROTECTION

WASHINGTON, D. C.—The repeal of the Walsh-Healey Public Contracts Act, advocated by Congressman Fred A. Hartley, Jr., of New Jersey, would leave only the 40-cents-an-hour minimum wage law to protect American workers, Secretary of Labor stated here.

Pointing out that the Federal Wage-Hour Law provides only a minimum wage of $16 for a 40-hour workweek the Secretary declared that the 80th Congress refused to increase that wage and that apparently Mr. Hartley wished to hold the worker who is employed on Government contracts down to 40 cents an hour.

"In Mr. Hartley's opinion, anything more than that is inflationary," Secretary Tobin said. He added that a 40-cent wage, in terms of 1939 dollars, amounts to only 23 cents of purchasing-power.

The Secretary replied to a statement issued by Rep. Hartley, in which the Congressman criticized the Public Contracts Division of the Department of Labor and advocated the repeal of the Walsh-Healey Public Contracts Act of 1936.

In the remaining part of his statement, Secretary Tobin said:

"The statement of Congressman Hartley, Chairman of the House Labor and Education Committee, recommended repeal of the Walsh-Healey Act. This Act was passed to prevent the United States Government from buying supplies from chiseling employers, and to support the manufacturer who wishes to pay decent wages. The Act does not force any employer to raise his wages. Under the Secretary's determinations, if the employer already meets the prevailing minimum standards in the industry, the determination will not cause him to have to raise wages. The Act does attempt to keep chiselers from benefitting from Government contracts.

"It may also be noted that the Congressman quoted by Congressman Hartley in support of his views stressed the importance of the safety and health requirements for Government bidders contained in the Walsh-Healey Act and the prohibition of prison-made goods, both of which would be repealed along with the minimum wage provisions if Congressman Hartley's repeal proposal were carried out.

"Mr. Hartley complains because Secretaries of Labor have not followed the impractical and nonsensical practice of determining separate minimum wages for each of the thousands of minute areas in which Government work might be performed. If the Secretaries of Labor followed Mr. Hartley's interpretation there would be no point in having the Walsh-Healey Act since it would, in essence, merely legalize whatever substandard wages were being paid by any particular manufacturer in a nonunion or depressed area.

"It would also create a situation, vividly illustrated by the Textron hearings, under which encouragement would be given for establishments to move into low wage areas and leave stranded behind thousands of workers who had been paid on a reasonable basis.

"For 12 years, Secretaries of Labor have found the prevailing minimum wage rates on the basis of actual facts in each industry. In the only case in which this was challenged the Supreme Court of the United States fully sustained that procedure.

"Mr. Hartley also fails to note that the support for the Walsh-Healey Act comes not only from labor organizations but from many employers, North and South who observe decent labor standards. During recent hearings, the Department received dozens of letters from manufacturers paying decent wages, including some from Hartley's own State of New Jersey, pleading with the Secretary of Labor to establish prevailing minimum wage standards in order that they might be able to compete for Government work.

"Mr. Hartley also comments on the hearings which have recently been held and apparently is fearful that rates will be found on the record higher than the 40-cents an hour maximum which is all he thinks workers should earn. Since the record of these hearings has not yet been presented to me, I will not presume to know what the record will justify. I hope the Congressman is not trying to intimidate me or influence my determination of minimum wages in plants performing Government contracts. I shall continue to carry out the mandate of Congress so long as the Walsh-Healey Act is on the statute books."

(S 49-337)

Mr. Hutcheson

January 12,
1948

Frei Chicago, Illin.

Hon. Wm. green, President
American Federation of Labor.
Washington, D.C.

RECEIVED
JAN 14 1948

Dear President:

You have pledged several times to the members of the American Federation of Labor to fight for repeal of the Taft-Hartley act.

This means, that we have to fight every U.S. Congressman and U.S. Senator, who voted for Taft-Hartley act.

as you know, 32 U.S. Senators are coming up for reelection this year, 18 Republicans and 14 Democrats.

all the 18 Republicans and 11 or 12 Democrats voted for the Slave labor act, among them 10 Senators from Southern States.

Therefore, I urge you to demand from the Democratic Party to put up candidates against the 18 Republicans and 11 or 12 Democrat Senators, who voted against labor.

We must back strongly U.S. Senator Murray of Montana and Green from Rhode Island. who voted for Labor.

If Senator Megrath, the Chairman of the Democratic national Committee

will refuse to cooperate and will not put up candidates against the ten antilabor Southern Democrats, you in Combination with C.I.O, Railroad Brotherhood and progressives will have to put up candidates against the antilabor Democratic Senators.
~~The~~ President Abraham Lincoln said: "~~A House~~ "a Country cannot be half Slave and half free."
and I say to you: "The Democratic Party cannot be half liberal and half reactionary.
Dont forget, that 106 Democratic Congressmen and 18 Democratic Southern Senators voted for Taft-Hartley slave labor act.
Senator Mcgrath said, that ~~the~~ they not want to purge the Democratic Party for Wallace. But he has to do it for Labor.
If the 18 southern Senators would uphold the Presidents Veto, the Taft-Hartley Bill would never become a law.
To override a veto is necessary to have two thirds vote in both legislative bodies.
If the 18 southern Senators would uphold the Presidents Veto, the Republicans would muster only 50 voter in U.S. Senate (68-18=50).

and would not be able to override the Presidents Veto.
It is the fault of the reactionary Southern Democrats that this obnoxious Bill became a law.
I want you to fight hard for pro labor Candidates to the U. S. Senate and to defeat the 18 Republicans and 11 or 12 Democrats, who voted against Labor.
This does not mean, that we will be able to repeal the Taft-Hartley act in 1949.
It will take years to do it.
Even if we will win all 32 seats in the Senate, it will not be enough to repeal that act.
To repeal a law is necessary to have 64 votes (2/3), and we will have maximum 57.
(32+25=57).
But it will be a step ~~in~~ forwards.
If you can Knock off the Taft-Hartley act in U.S. Supreme Court would be much better.
I want you also to testify before the Senate Committee for repeal of the poll tax in seven Southern States.
If ~~we~~ we will restore the right of the negroes in the South to vote, they may help us to unseat one 10 Southern Reactionary

Wallace Ticket Worries GOP In Senate Races

January 16, 1948

Honorable Ray J. Madden
Room 235 - Old House Office Building
Washington, D. C.

My dear Congressman:

In compliance with your request, transmitted through Mr. Bingham Mathias, I am enclosing "Weekly News Services of the American Federation of Labor" from December 2, 1947 through January 13, 1948, which carry the article "Taft-Hartley Law Exposed".

With best wishes, I am

Sincerely yours,

W. C. Hushing, Chairman
National Legislative Committee
American Federation of Labor

H/a
Enclosures

January 16, 1948

Mr. Charles Bagman
Senator Pepper's Office
Room 253, Senate Office Building
Washington, D. C.

Dear Mr. Bagman:

In compliance with your phone request, I transmit herewith pamphlets published by the American Federation of Labor in regard to the Taft-Hartley Law and the roll call votes thereon.

I also enclose a copy of Mr. Woll's statement on taxation.

I do not know of the book you iquired about which gives a history of the Taft-Hartley Act from its inception. I have made inquiry at our library and at the Washington News Company, without results, and I suggest that you make inquiry at the Congressional Library.

Sincerely yours,

W. C. Hushing, Chairman
National Legislative Committee
American Federation of Labor

H/a
Enclosures

Corres. Geo. J. Øneto President, Wine, Liquor and
Distillery Workers Union Local 1, N. Y. City. Jan 16, 1948
in re Taft Hartley Act and correspondence he submitted to
Sen. Ball - see file

Sen. Ball - Minn.

Sacramento Calif.,
25 Jan, 48.

Mrs Hedeman

The A.F. of L. Headquarters,
901 Massachusetts ave., N.W.,
Washington, D.C.

Dear Sirs,

I am a union man. Carry a union card (Brotherhood of Railway and Steamship Clerks). I believe in unions, but I do not believe in your so called "purge" of representatives who voted for the "Taft-Hartly" labor law.

I would like to call your attention to page 121 of the January issue of the Readers digest I feel the same way, and I'll feel very unkindly towards any "so called" labor leader who spends what I pay in to defeat honest men.

Just bear this in mind!

Yours truly
Frank Hill.

RECEIVED JAN 30 1948

2/16/48 Mr. Hamburg

UNITED BROTHERHOOD OF CARPENTERS AND JOINERS OF AMERICA

Lumber and Sawmill Workers Loggers Local Union No. 2646

LABOR TEMPLE

PHONE 668 — P. O. BOX 201

KALISPELL, MONTANA

February 12, 1948

George Meany, Secretary-Treasurer
American Federation of Labor
A. F. of L. Building
Washington 4, D. C.

Dear Sir and Brother:

I would like to receive about 100 copies each of any new educational, organizational or anything of a nature to explain the Taft-Hartley Act. I do not mean the pamphlets put out by your General Counsel, but rather pamphlets which might be distributed to new members and people who we are trying to organize.

We have on hand enough of the pamphlets "The Spirit of America", "What You Owe to the American Federation of Labor", & "A Union Catechism"; and hope that you might have some new ones which we can alternate with these.

Fraternally yours,

Ellen Olson

Ellen Olson, Fin. Sec'y
Loggers Local Union 2446
Box 201
Kalispell, Montana

UNITED BROTHERHOOD OF CARPENTERS & JOINERS OF AMERICA ☆ LOGGERS L. U. 2646 KALISPELL, MONT.

RECEIVED FEB 16 1948

MEMBER OF MONTANA DISTRICT COUNCIL AND NORTHWESTERN COUNCIL
LUMBER AND SAWMILL WORKERS

[redacted]

[redacted]

[redacted]

C. R. LUMLEY
PRESIDENT

TELEPHONE
BIRMINGHAM 2174

A. VIRTUE
SEC.-TREAS.

Oakland County Building & Construction Trades Council

AFFILIATED WITH
AMERICAN FEDERATION OF LABOR
BUILDING AND CONSTRUCTION TRADES DEPARTMENT
135 N. Woodward Avenue, Wilson Building
BIRMINGHAM, MICHIGAN

March 5, 1948

2/8/48
M Ahearn

Mr. George Meany, Sec. Treas.,
American Federation of Labor
A. F. of L. Building
Washington 1, D. C.

Dear Sir and Brother:

At the recent Convention in California a large sheet showing the vote by Senators and Representatives relative to the Taft-Hartley Act was presented. I would like very much to have twenty-four (24) copies of this record if any are still available.

Thanking you, I am

Fraternally yours,
C. R. Lumley, President
C R Lumley
OAKLAND CO. BLDG. AND
CONSTRUCTION TRADES CO.

CRL;r

OFFICE EMPLOYEES INTERNATIONAL UNION AFL UNION LABEL 42

RECEIVED MAR - 8

T-H Roll Call Votes

MEMORANDUM

To: President Green
From: W. C. Kushing
Date: March 11, 1948

March 9, 1948

Mr. C. R. Lumley, President
Oakland County Building and
Construction Trades Council
135 N. Woodward Avenue
Wilson Building
Birmingham, Mich.

Dear Sir and Brother:

This will acknowledge receipt of your letter of March 5.

We do not have the large sheets showing the votes of the Senators and Representatives on the Taft-Hartley Act. However, we have a pamphlet of the roll call votes, and I am enclosing twenty-four copies, which I trust will be helpful to you.

With kind regards, I am

Fraternally yours,

Secretary-Treasurer
American Federation of Labor

em
oeiu#2
enc. 24

[redacted]

To: [redacted]
From: [redacted]
Date: March 13, 1968

I had a talk with some of the minority members of the Joint Committee on Labor-Management Relations (Taft-Hartley Act), of which Senator Dirksen and Congressman Hartley are Chairman and Vice Chairman.

Their preliminary report is attached but the minority members wish to make a minority report (Pepper, Murray, etc.) and have asked us for material upon which to base it.

Will you have our attorneys prepare such comments in order that I may have them in the hands of these friendly Senators by Tuesday morning.

WCE/[redacted]

Taft-Hartley

M E M O R A N D U M

To: Secretary Meany
From: W. C. Hushing
Date: March 18, 1948

Congressman Augustine B. Kelley phoned me and directed my attention to the footnotes on page seven of this month's issue of the FEDERATIONIST, in regard to Members of the House and Senate not voting on the question of overriding the President's veto of the Taft-Hartley Act.

The footnotes explain that Senator Thomas was in Switzerland attending the I.L.O. conference, and Senator Wagner was ill.

Congressman Kelley pointed out, as a matter of fact, that he was also in Switzerland and on the same mission, and with Senator Thomas. He states that he has received many communications regarding the matter and that he has had difficulty in explaining. He wants to know if there is any way we can straighten it out.

Congressman Kelley is one of our Aces in the Congress of the United States, and while he is a mine owner, he is always most active in our behalf. As you know, he worked Saturday, Sunday and nights when we were preparing the Minority Report on the Taft-Hartley bill, of which he was a co-signer.

Is there anything that you can do about the matter?

Barnes, W. L. Miss Miss State Fed. Mar. 26, 1918

In re workers rights - to join union etc.
and file

Miss. State Fed. File.

March 20, 1948

Mr. Max G. Worthington
The Pennsylvania State College
State College, Pennsylvania

Dear Sir:

Your letter to the Literature Distribution Department of the American Federation of Labor, requesting information as to our policy in regard to non-Communist affidavits, has been referred to me for reply.

In order that there be no misunderstanding, I am sending you under separate cover a copy of our 1947 Convention Proceedings together with pamphlets which express clearly our policies.

Sent 3/31/48 EA

For your information, I wish to advise that the officers of the American Federation of Labor have fulfilled their requirements under the Taft-Hartley Act. However, you will note from the action taken at our Convention that it is optional on the part of the International Unions.

I trust this answer will serve your purpose.

Very truly yours,

Walter J. Mason
National Legislative Representative
American Federation of Labor

WJM/a

PANDORA'S BOX

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RECEIVED AR 2 - 1948

PAGE ONE EDITORIAL

OUR INJUDICIAL JUDICIARY!

By JOSEPH M. CASEY
General Representative of the American Federation of Labor
Assigned to Arizona

Under government by law there are law makers and law administrators, and, over and above these, sit the judges of the law. This last, by far, is the most sacred and therefore the most dignified arm of our government. It is presumed that when legislators make laws, or when the people through elections make laws, these laws are constitutional. But, as you have no doubt noticed, this is only a presumption. If it is a mere presumption, then the all important question is: How do we pass from the field of presumption to the field of fact? Is this the function of our legislators? Is this the function of the people as voters in a regular election? Is the constitutionality of laws decided by a mere counting of heads---a majority, in other words? In a conflict as between one set of constitutional rights and another set of similar rights is there not a specific branch

law (the infamous, misnamed 'Right-to-Work' law) has a rational basis and could on any reasonable theory contribute to the public welfare. The considered and deliberate action of the people of Arizona has determined this in the affirmative; rule by the majority is the essence of democracy."

...the unanimous language of our Supreme

PANDORA'S BOX

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RECEIVED APR 2 - 1948

PAGE ONE EDITORIAL

OUR INJUDICIAL JUDICIARY!

By JOSEPH M. CASEY
General Representative of the American Federation of Labor
Assigned to Arizona

Under government by law there are law makers and law administrators, and, over and above these, sit the judges of the law. This last, by far, is the most sacred and therefore the most dignified arm of our government. It is presumed that when legislators make laws, or when the people through elections make laws, these laws are constitutional. But, as you have no doubt noticed, this is only a presumption. If it is a mere presumption, then the all important question is: How do we pass from the field of presumption to the field of fact? Is this the function of our legislators? Is this the function of the people as voters in a regular election? Is the constitutionality of laws decided by a mere counting of heads---a majority, in other words? In a conflict as between one set of constitutional rights and another set of similar rights is there not a specific branch law (the infamous, misnamed 'Right-to-Work' law) **has a rational basis and could on any reasonable theory contribute to the public welfare. The considered and deliberate action of the people of Arizona has determined this in the affirmative; rule by the majority is the essence of democracy."**

There you have it, the unanimous language of our Supreme

PAGE ONE EDITORIAL

[illegible]

[illegible] rational basis and could on any reasonable theory contribute to the public welfare. The considered and deliberate action of the people of Arizona has determined this in the affirmative; rule by the majority is the essence of democracy."

There you have it, the unanimous language of our Supreme Court. Majority rule, a mere counting of heads, is all that is needed. Whether in part or whole, this is an absurdity! Yet, if such reasoning holds any weight at all, then the absurd question: Why have courts at all? could be asked.

Our form of government, besides accepting and upholding the "rule of the majority" on pertinent issues, provides for a carefully worked out "system of checks and balances." Our two party system, our two house legislatures, and superimposed over and above our free elections, our legislatures, and our executives as a "check and balance," if you please, is our **Judiciary.** Our Founding Fathers knew that democracies are not perfect, and provided our Constitution and our Courts to prevent the people from voting themselves into a slave state!

This is not extreme or absurd. Look back at elections of the people that had to be over ruled by our Courts! Election campaign trickery is certainly not unkown to us. Coercion of voters by politically controlled bosses "has happened here." But, thanks to that great and powerful arm of our Democracy, **Our Courts,** election frauds are and have been the exception rather than the rule in America!

In the face of the foregoing how are we to interpret the above quoted language of the Supreme Court of Arizona! We know that the big powerful monopolies and monied interests of Arizona backed the passage of the infamous "Right-to-Work" law! We know that dollars have "swung" elections! We know that "dollars of the tycoons of big business" played a tremendous part in the so-called "Right-to-Work" election. We feel that the Supreme Court of Arizona is aware of these possibilities also. Therefore, and with the deepest of respect for our general Judiciary, we are forced to ask: Why did the Supreme Court of Arizona shirk its responsibility by passing the buck to the people of Arizona? Certainly this Court must know that it can not apply the "rule of the majority in this case any more than it could apply the "rule of the majority" to the unanimous vote of the people of Arizona, should they so vote, to pay no more taxes! Certainly each member of this court knows better, and, then again, maybe the words of the poet Pope apply here:

> "A little learning is a dangerous thing
> Drink deep, or taste not the Pierian spring."

At any rate, the laboring people of Arizona have every right to be alarmed at the action of their highest court in investing the election of the people with any final sustaining judicial significance. This they feel is wrong right on its very face. This they feel can be termed "playing politics"!

Arizona Union Labor is and must be "equal under the law"! Rights given to non-members of unions definitely classifies Arizona workers into non-members of unions and members of unions. The language of the atrocious "Right-to-Work" law definitely takes sides, supposedly according a right to non-members of unions, while completely ignoring the same right for union members.

Fortunately the law is, to all intents and purposes, inoperative until the November election. This will be a test, not a legal test mind you, but a political test---yes, a very popular test. The Supreme Court of Arizona through its wrongful emphasis and recognition of the value of such tests in the judicial field nevertheless points up the necessity of union labor massing its strength at next November's election if for no other reason than to show this court how injudicial it is a judicial body;

Check with your union! Join the campaign against wage slavery! Place yourself in a position to vote against and fight against Senate Bill 65 which will put fangs in the so-called "Right-to-Work" law.

from H. M. Jones
P.O. Box 91.
Praco Ala

PRACO
APR
12
A.M.
19
AL

THIS SIDE OF CARD IS FOR ADDRESS

Legislative Chairman
A.F.L. Building,
Washington, D. C.

W. M. Jones

P.O. Box 91.

Pascagoula

4/12/48.

Dear Sir,-

Please send me the literature and analysis of dastardly act of the Taft Hartley anti-labor act. Please Sir, Yours truly

W. M. Jones

April 5, 1949

Mr. W. M. Jones
P. O. Box 91
Praco, Alabama

Dear Sir:

In compliance with your request of April 2, I am sending you, under separate cover, a set of our material on the Taft-Hartley Act.

Very truly yours,

W. C. Hushing, Chairman
National Legislative Committee
American Federation of Labor

em
oe1u#2

5 bulletins
Summary
Conf. Rpt.
T-H Law Exposed
Jan. Feb. Mar. Research Rpt.

Dear Fellow Citizen:

You may have felt, as I did, that even Congress- sional measures necessary in 1947 to get any labor law reform through the Senate and past a veto were difficult to swallow and fight for outright repeal of the Taft-Hartley Act -- that nothing short of a law that would effectively protect the RIGHT TO WORK can save our country from domination and ruin by class-conscious Labor monopolists.

But we have the Taft-Hartley Law, and we simply must get something much worse if we don't meet the Labor Bosses' challenge of 1948.

If we lie down now and let them purge the men who took their political lives in their hands to vote in the public interest, we shall deserve just what we'll have handed to us. And it won't be any less bitter than the Socialist Labor Government's deal to British middle-classes, doctors, professional men, stockholders, investors and business leaders, or the trades union Action Committees' liquidation in Czechoslovakia.

Do not our responsibilities to stockholders, to employees, to ourselves, permit -- yes, require -- us to take affirmative action now?

The enclosed call for "100,000 PAUL REVERES" is a simple, direct appeal to all thinking Americans. I am including these blanks in Company mail. Their purpose is fully explained in the brief printed text. Proof of their effectiveness is coming in every mail to the Committee's headquarters.

THERE'S NO CEILING ON EFFORT!

Senators Voting Against Marshall Plan	Vote Overriding Veto - Taft-Hartley Act Name 17 Senators	
	For Taft-Hartley Law	Against Taft-Hartley Law
Bell	Bell	
Brooks	Brooks	
Byrd	Byrd	
Capehart	Capehart	
Cordon	Cordon	
Jenner	Jenner	
Johnston, S.C.		Johnston, S.C.
Kem	Kem	
Langer		Langer
Malone		Malone
Moore	Moore	
O'Daniel	O'Daniel	
Revercomb	Revercomb	
Taylor		Taylor
Wherry	Wherry	
Williams	Williams	
Wilson	Wilson	

FRUEHAUF TRAILER COMPANY
DETROIT 32, MICHIGAN

May, 1948

SEAMAN'S JOURNAL
A F OF L BLDG
WASHINGTON D C

SUS

Dear Fellow Citizen:

You may have felt, as I did, that the compromises necessary in 1947 to get any labor law reform through the Senate and past a veto were ill-advised -- that it would have been better to stand on principle and fight for outright repeal of the Wagner Act -- that nothing short of a law that would absolutely protect the RIGHT TO WORK can save our country from domination and ruin by class-conscious Labor Monopolists.

But we have the Taft-Hartley Law, and we shall get something much worse if we don't meet the Labor Bosses' challenge of 1948.

If we lie down now and let them purge the men who took their political lives in their hands to vote in the public interest, we shall deserve just what we'll have handed to us. And it won't be any less bitter than the Socialist Labor Government's deal to British middle-classes, doctors, professional men, stockholders, investors, and business leaders, or the trades union Action Committees' liquidation in Czechoslovakia.

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THERE'S NO CEILING ON EFFORT!

(Please See Other

Permit me, please, to suggest that you put someone on the job of recruiting 5, 10, 25, 50, or 100 PAUL REVERES among your immediate associates; also, that you send for bulk quantities of the blank for your "tuck-in" mail. Please use order blank enclosed for your convenience.

Sincerely yours,

Harvey C. Fruehauf

Harvey C. Fruehauf, Trustee
Committee for Constitutional
Government, Inc.

TO: COMMITTEE FOR CONSTITUTIONAL GOVERNMENT, INC., 205 East 42nd Street, New York 17, N. Y.

In response to Harvey C. Fruehauf's suggestion, we are ready to cooperate as follows:

1. Help you enroll 100,000 Paul Reveres. Enrollment for Associates and their checks enclosed herewith ..... How Many? _____ $_____ How Much?

2. To help you defray costs of your general campaign, we enclose herewith our contribution. ($10 to $490) ..... $_____ How Much?

3. Please enter our order for copies of the book, "LABOR MONOPOLIES OR FREEDOM," at 50¢ a copy.

   (a) Mail us in bulk..... How Many? _____

   (b) Mail to lists we will supply..... How Many? _____

   (c) Mail to your lists of physicians, clergymen, business leaders, you paying postage..... How Many? _____ $_____ How Much?

4. Please send us additional copies of the Paul Revere enrollment blank. (Up to 20 free; 30¢ per 100; $2 per 1,000)..... How Many? _____ $_____ How Much?

5. Please send us information for local use, about radio transcriptions dealing with the need for sending strong men to Congress, information about a series of ads to become available; also information about direct mail campaign reaching all names in telephone directory, and rural mail boxes in our community..... Check Here _____

CHECK ENCLOSED — $_____

NAME _____ TITLE _____
(Personal or Corporate) (If ordered in corporate name)

ADDRESS _____ CITY _____ STATE _____

Please See Other Side

NEEDED — 100,000 PAUL REVERES TO SAVE YOUR GOVERNMENT FROM LABOR-BOSS CONTROL!

● *In Great Britain,* trades union bosses delivered the Nation to collectivism and poverty while citizens like you slept. *In Czechoslovakia,* trades union ACTION COMMITTEES took over the government for a Communist minority while citizens like you slept.

Is America next? Labor bosses vow that they will take over your Congress this year. *Will you sleep or fight?*

If this is not a people's fight, it is lost. Write for up to 20 free copies of this blank. Enlist others to do likewise. Buy in bulk to distribute in your community and as a "tuck-in" in your mail. 30¢ per 100; $2 per 1,000; postpaid anywhere. Ask for *"Needed 100,000 Paul Reveres."*

Please fill out and mail your check today.

To: COMMITTEE FOR CONSTITUTIONAL GOVERNMENT, INC.
205 East 42nd Street, New York 17, N. Y.

To further your non-partison, non-political, educational work, making clear the dangers arising from labor monopolies' mis-using gigantic funds for political campaigns, I hereby subscribe as set forth below.

All who give $1 or more receive *Free* the book, "Labor Monoplies OR Freedom." All who give $10 or more will receive *Free,* 104 copies of former Congressman Pettengill's "Inside Your Congress" Letters, issued bi-weekly.

1. Please send me FREE "Housewife's Dilemma No. 2," which explains danger of labor-boss rule to middle-classes, professional men, stockholders, farmers, skilled workers..... _____
   Check Here

2. Enclosed herewith my contribution for..... $_____
   How Much?

NAME_____ TITLE_____
(Personal or Corporate)

ADDRESS_____ CITY_____ STATE_____

MAKE YOUR CHECK PAYABLE TO: COMMITTEE FOR CONSTITUTIONAL GOVERNMENT, INC.

(See other side)

PRINTED BELOW—QUOTATION FROM NEWSPAPER DISPATCH OF MARCH 9

Labor Reprisals Denounced

Indiana's representatives who voted for the Taft-Hartley labor law denounced labor leaders in their state for attempting to raise $258,000 to put them out of office. The union leaders' campaign, the representatives said, is a "challenge to fair and honest elections."

Particular target of the attack was the American Federation of Labor League for Political Education. This organization has begun political war against all representatives who voted for the labor law.

The Representatives complained that the unions are planning to spend more than $28,000 a Congressman to oust the Congressmen whereas they, the Representatives, have only $3,594 each to spend for re-election.

AND THE COURTS SAY THIS IS LEGAL!

To: Middle-class Citizens, Professional Men, Farmers, Stockholders, Industrial Workers.

You must act now for labor bosses are moving to dominate your government here as in England and Czechoslovakia. They get annually $425 millions in regular dues, an estimated $200 millions in special assessments, and mis-use for political purposes an army of 100,000 shop stewards paid by stockholders an average of $2,000 each annually—50 times as much as all political parties together.

Will you permit John Lewis, Phil Murray, William Green and their associate bosses of monopolistic unions to purge from public life those patriotic men in Congress who, regardless of party, had the courage to stand up for your freedom and prosperity? Will you permit them to use their swollen money bags and monopolistic powers to defeat all, whether Democrats or Republicans, who refuse to wear their collar and to pledge themselves to their harmful legislative program? Will you permit labor-boss rule to set up in the United States a super-state and to take America down the same road over which British trades unions took England to collectivism and poverty. If not, you must act now!

If, with your help and that of other friends and supporters, we can add 100,000 Paul Reveres, giving an average of only $5 each (many millions of union members pay an average of $18 per year), we can to a large extent offset the destructive influence of labor monopolists, by non-partisan education, using radio transcriptions, press releases, advertising and direct mail, with special attention to these critical issues during the balance of the year.

COMMITTEE FOR CONSTITUTIONAL GOVERNMENT, INC.
205 East 42nd Street • New York, 17, N. Y.

TO ALL EDITORS

For immediate release. For use as letter to the editor, feature article or background material for editorials. Copy has gone to all members of Congress for their information.

Fundamental Issues In the Coal Strike

By JOHN W. SCOVILLE
Consulting Economist

THE PRESENT COAL STRIKE brings to the surface the flaw in popular thinking and legal philosophy in regard to labor unions.

Recently I saw many miners in their blue overalls walking and standing in the streets of Kentucky towns. Obviously, no public official has the right, or should have the right, to compel anyone of these men to go into the mines or to fine or imprison him for not working. It is no crime to loaf or take a vacation. Yet the public damage is so great when all coal mines are shut down at the same time, that there is a crime somewhere in the wood pile. Let us see if we can find it.

WHERE THE GUILT WOULD BE APPARENT

Suppose that all owners of coal mines formed a combination—call it the United Mine Owners—and in order to make coal more scarce so they could raise the price of coal, or to compel miners to accept lower wages,—should simultaneously shut down all coal mines. This would be a violation of the Sherman Act, and would subject the mine owners to fines and imprisonment.

The mine owners have the legal (and moral) right to form an association for legitimate purposes, such as the collection of statistics, presentation of facts to Congressional committees, discussion of safety measures, etc. But the association becomes illegal when it seeks to limit competition or restrain trade.

The objective of the Sherman Act is to preserve competition and to outlaw monopolies. Specifically, it would be illegal for an association of coal mine owners to act in concert through the association to influence the price of coal,—either to raise the price or lower it. Competition is superior (with some exceptions) to monopoly as the regulator of our economic activities. For under competitive system there is a tendency each enterprise to increase its profit by increasing sales and output, by offering better products, better services and lower prices. This results in a national increase in real output of goods and services, in a higher scale of living, and greater material prosperity. It causes trade and production to gravitate to those individuals, firms and areas that produce most efficiently. Monopolies, on the other hand, tend to produce opposite effects.

UNION DEPENDS ON MONOPOLY

Strangely enough, many people, and most of the lawmakers, believe that workmen should not compete with each other, but should be allowed to form monopolies, either industry-wide, such as the United Mine Workers, or local, such as a labor union in a single factory or mine. A labor union in a single factory cannot be effective unless it has monopoly power, which it enforces mainly through strikes.

We the people, acting through government, are having difficulty in coping with the coal strike. John L. Lewis says he did not call a strike. To ask him to send the men back to the mines is to admit that he has monopoly power over coal mining. If we force miners back to their jobs, that is involuntary servitude. Our basic trouble is that in our thinking, and in our laws, we have condoned and encouraged the formation of labor monopolies. Those who believe that labor monopolies should be protected and encouraged by law should not complain when labor monopolists shut down all coal mines. If we sow thistle seed, we should not complain when our fingers get pricked.

TAFT-HARTLEY ACT INADEQUATE

The Taft-Hartley law is not the answer. This law seeks to eliminate some of the evils of labor monopolies—while still preserving and protecting the labor monopolies. The evil to be eliminated is not the logical and inevitable effects of the monopoly, but the monopoly itself. We have a double standard of economic morals. The laws condone and encourage monopolies formed by farmers and workmen for the purpose of raising prices, limiting output, and limiting competition, but brand as criminal associations of industrialists which have similar objectives.

We may note that the monopolies which are encouraged by government are among groups of large numerical strength and voting power. Perhaps the conscience of the lawmaker, when he ponders the monopoly problem, is blunted by the fact that government is itself a colossal monopoly, with power to deprive the citizen of property, liberty and life.

The fact that the majority rule in a democracy should not obscure the fact that the majority vote simply determines which group shall be given monopoly power. Invariably the ruling majority will pass laws to benefit the ruling group, and to oppress minorities. Thus, existing laws favor tenants as against landlords; favor employees as against employers; favor the poor as against the rich. Those who clamor for greater

equality in wealth and income does that citizens should have equality in the law. Thus the employee is free to quit the employer, but the employer is not free to discharge the employee; the tenant is free to vacate the house, but the landlord is not free to evict the tenant; the tax rate for the poor man is low, and for the rich man is high. To expect that a majority of voters will ever demand an impartial government with equal rights for all is probably an Utopian dream.

WHERE UNIONS HAVE FAILED

Many believe that labor unions are necessary to increase the real wages of employees. There is no conclusive evidence, I believe, that labor unions have increased the real wages of all who work,—and there is considerable evidence that the reverse is true—that labor unions have lowered real wages. But even if it could be proved that labor unions have increased the real wages of organized workers, this would be no valid defense. We could not defend an association of bank robbers by showing that the association had increased the loot. We cannot solve our labor problems, or eliminate such disasters as the present coal strike, until the majority of voters realize that all monopolies are evil,—and that competition will result in more wealth-production, more justice, more industrial peace, more prosperity, than its opposite, which is monopoly.

We must show the workingmen that if they can organize a monopoly, other groups can do the same. That when all groups are organized into monopolies, output will be reduced and poverty increased. That in the long run labor unions will decrease, and not increase, the real wages of workmen.

But it is a monumental task to get people to realize that liberty is desirable, and that our economic affairs should be based on voluntary agreements rather than on force, violence and coercion—that business transactions, insofar as possible, should be between individuals rather than between huge groups of organized monopolists. The big educational job that must be done is to make the American people realize that individual freedom is superior to collectivism.

Distribute this folder widely among civic leaders in your community, heads of women's organizations, service clubs, farm organizations, editors, lawyers, to your fellow workers. 5 copies free on request; 24 for $1; 100 to 700, $2 per 100; 1,000 or more, $15 per 1,000. Ask for "FUNDAMENTAL ISSUES IN THE COAL STRIKE." Ask for the book "LABOR MONOPOLIES OR FREEDOM," by the same author, $1 per copy.

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TO ALL EDITORS
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...olitical Mill

Fight on Taft-Hartley Act Makes Little Progress

Only 7 Out of 132 House Members Defeated for Renomination

By Gould Lincoln 5/11/48

The drive of organized labor leaders—CIO and AFL—to sink the Congress which passed the Taft-Hartley Act hasn't made enough progress to arouse even a faint trickle of enthusiasm among the most ardent opponents of the act. Already 132 members of the House have come up for renomination—and only seven have been defeated for renomination, including Republicans and Democrats. And none of those defeats can be wholly charged to the opposition of labor. There remain 303 House members to be nominated—and the CIO's PAC and AFL's new educational agency may be expected to do their utmost to knock off as many of the incumbents, who voted for the Taft-Hartley law, as possible.

Furthermore, in several instances the labor leaders singled out individual members of the House for attack in the primaries so far held for congressional nominations. There was the third district in Pennsylvania, for example, where the Taft-Hartley Act was made the issue in the effort to defeat Representative Hardie Scott, Republican, for renomination. The fifth Alabama district was made a battleground against Representative Albert Rains, Democrat, too. In both cases, however, the incumbents won. The AFL unions were particularly active, too, in several of the Indiana districts—where six incumbent Republican representatives faced opposition, including Majority Leader Charlie Halleck. They got nowhere in this protest vote. Mr. Halleck, who was opposed by a union man, won by something like 30,000 votes to 6,000 for his opponent.

Two GOP Members Lose Out.

Two Pennsylvania Republicans, Representatives Gallagher and Chadwick, lost out but their defeats were due in the main to differences in the Republican organizations in these districts. Representative Carter Manasco, whom the labor leaders sought to defeat two years ago, was beaten in a recent primary by a disabled veteran of the last war, Carl Elliott. Mr. Elliott had a strong organization among the veterans. It is undoubtedly true that labor's old opposition to Mr. Manasco was in part responsible for his defeat. But it was not the whole story by a jugful. There is no reason to believe, either, that Mr. Elliott would follow the behest of the unions and vote to repeal the Taft-Hartley law.

A claim has been widely made by organized labor that it scared Representative Hartley of New Jersey into retiring from the political field. The New Jersey Republican, whose name is tied to the labor law, is not a candidate this year to succeed himself. The fact of the matter, as related by Majority Leader of the House Halleck, is that Mr. Hartley had decided not to seek renomination before the Taft-Hartley labor bill was written—and Mr. Hartley stuck to that decision. Some of his colleagues tried to get him to change his mind and run—but he would not.

Dilemma in Ohio.

Organized labor leaders—particularly CIO—were on the horns of a dilemma in the recent Ohio primary. They wished to throw as many labor votes as they could, in the primary for election of delegates to the Republican National Convention, for Stassen and against Taft. On the other hand, organizationally they had gone on record to support former Mayor of Cleveland Miller against former Governor Lausche in the race for the Democratic gubernatorial nomination. Under the circumstances, they were forced to hold a lot of Democratic labor votes in the Democratic primary, which otherwise might have been cast for Mr. Stassen. In some of the industrial centers like Youngstown, Akron and Dayton, labor did go out and vote for Mr. Stassen in a big way. But the move-over from the Democratic to the Republican primary was not as great as had been expected. Senator Taft, the hated co-author of the labor law, came out of the primary with more delegates than the antis had been willing to concede him.

The labor leaders have not given up their political endeavors. They are still doing all in their power to get as many voters to register as possible. When this drive comes to an end—as it must when the last filing date has passed—they will go ahead developing their "block system"—picking representatives in each city block and making them responsible for canvassing every voter in each block.

This is the year when organized labor moved into the political field on an unprecedented scale. The leaders will work from now on desperately to get results. Large funds are being raised. It should be remembered, however, that 331 members of the House voted to override President Truman's veto of the labor law, and 68 senators. To defe... majority of them seems an impossibl...

May 13, 1948

Mr. L. Vandenbergh
2115½ Wilmot Street
Los Angeles (7), Calif.

Dear Sir and Brother:

This will acknowledge receipt of your postal card of May 3, referring to the broadcast of Fulton Lewis in which he belittled the A. F. of L. membership for their interest in the Taft-Hartley Law, and suggesting that a questionnaire be sent to all local unions regarding their attitude toward this law.

This has been done months ago, as the enclosed copy of our Weekly News Service shows.

We are a nonpartisan organization and do not cater to any party or individual, but for the things they advocate. Therefore, we cannot poll our affiliates as to whether they favor a Democrat or Republican for President.

I have sent your postal card to Mr. Joseph D. Keenan, Director of Labor's League for Political Education for his attention.

Fraternally yours,

President
American Federation of Labor

WCH:em
oeiu#2

cc to Mr. Joseph D. Keenan

John J. Walsh
City Court Chambers
Utica 4, New York

May 17, 1948

Mr. George Meany
American Federation of Labor
A. F. of L. Building
Washington, D. C.

Dear Mr. Meany:

I have had a number of requests from local unions in the vicinity for the chart of the Taft-Hartley Act votes by congressmen throughout the country.

I have seen one such chart which I believe is put out by the American Federation of Labor. So many unions have been asking me to find out about the matter, that I wish you would check on the matter, and if possible, send me about one-half dozen. We especially need these in the rural area of upstate New York.

Sincerely,

John J. Walsh

JJW/AC

RECEIVED MAY 19 1948

Hartley

Clifton, West Virginia.
~~Washington, D. C.~~ May 25, 48

Hon. William Green.
Pres. A. F. L
Washington. D. C.

My dear Sir. **May 19, 1948**

About three weeks ago. I herd a Union Miner say he supposed to be one state. That Dewey was for the Taft Hartley. also that You was for the Taft Hartley. Now I know how they was for the bad law. But I new they you were against this law all over. why I do not know. But He kept set in the Union as He is a Company man. and mean a company man. and they will misrepresent any Etc. get a vote for Dewey and the G O P Congressman

Honorable John J. Walsh
City Judge
413 Oriskany, West
Utica 4, New York

Dear Judge Walsh:

In reply to the request contained in your letter of May 17, I take pleasure in forwarding you twenty copies of the votes made by Members of the United States Congress when the Taft-Hartley law was under consideration.

Are you for the Taft Hartley law.
are you for the lowering the High cost of Living.
and this date From His Office I received Pamlets
on the Taft Hartley. law. and I get it from them in
plain talk that He is for them teeth and toenails.
These Pamlets show more laboring man are for it than
ones against this I know is false and for the
Taft Hartley law out and out. and it has worked.
has worked. But He did not state How bad it worked.
Bill How can John Lewis be for Dewey.? The republicans
wrote up this law and the republicans and souther Democrats
Made it a law. and over the veto of the Pres. Then John
WCHs. blames Truman out and Out Truman. had to envorse
this law are be impeached. The way to kill a snake is to start
at his head not His tale. I think we all ander stand Mr
Lewis. He is a G O P. so am I. But I never will vote for
G O P this fall. not a dam one. and I am a retired Worker
But as long as I live. I will support the laboring man in
His fight for rights. Lewis knows well. if Dewey can be
elected. He will carry. every Senator and Congressman. who
voted for this Taft Hartley law. Why dose not Like a Foolish
Boy. I do not know. They pas this bill on the account of His
dose His brames worke the rong way. Must be something
Rong. in His selfish Nogon. Will I guss you will weary of this
long letter. But I just got to blow stam for the working
and Poor man. best wishes for a clean up from top to
bottom. clear the skys on election day of the Taft Hartley
Bugs. Best wishes to you and all Good Union Men where ever
they may Be

With best wishes, I am

Sincerely yours,

Secretary-Treasurer
American Federation of Labor

Sec't. W. N Haynes. W. N. Haynes

Enclosures

Clifton, West Virginia.
~~Washington, D. C.~~ Aug 29, 48

Hon. William Green.
Pres. A. F. L
Washington. D. C.

My dear Sir.

About three weeks agb. I herd a Union Miner are He susposed to be one state. That Dewey was for the Taft Hartley. also that You was for the Taft Hartley. Which I new dewey was for the bad law. But I new postively you were against this law all over. why He stated the above I do not know. But He dose not have any say in the Union as He is a Comany man. and mean a company man. and they will missrepsent any thing to get a vote for Dewey and the G O P Congresman Etc.

I Wrote Mr. Deway a while back asking Him to just state yes are No to two questions. and the questions were as follows.

Are you for the Taft Hartley Law,,
Are you for the the lowering the High cost of Living.
and this date From His Office I received Pamlets on the Taft Hartley. law. and I get it from them in plain talk that He is for them teeth and toenails. These Pamlets show more laboring man are for it than ones against tthis I know is falsehood. He is for the Taft Hartley law out and out. thay also state How good it has worked. But He did not state How bad it worked. Bill How can John Lewis be for Dewey.? The republicans wrote up this law and the republicans and souther Democrats Made it a law. and over the veto of the Pres. Then John Lewis. blames Trueman out and Out Trueman. had to envorse this law are be impeached. The way to kill a snake is to start at his head not His tale. I think we all under stand Mr Lewis. He is a G O P. so am I. But I never will vote for G O P this fall. not a dam one. and I am a retired Worker But as long as Ilive. I will support the laboring man in His fight for rights. Lewis knows well. if Dewey can be elected. He will carry. every Senator and Congressman. who voted for this Taft Hartley law. Why dose act Like a Foolish Boy. I do not know. They put this bill on the account of Him dose His branes worke the rong way. Must be something Rong. in His selfish Nogon. Will I guss you will weary of this long letter. But I just got to Blow steam for the working and Poor man. best wishes for a clean up from top to bottom. clear the skys on election day of the Taft Hartley Bugs. Best wishes to you and all Good Union Men where ever they may Be Respt. J? N Haynes.

J. N. Haynes

Please let Mr Truman know
we thru Him

STATE OF NEW YORK
EXECUTIVE CHAMBER
ALBANY

August 20, 1948

Mr. I.N. Haynes
Clifton,
West Virginia

Dear Mr. Haynes:

On behalf of Governor Dewey, I acknowledge with thanks your letter of July 30th.

In his coming speeches, the Governor will undoubtedly deal with the subject of your inquiry, as well as all other important issues.

We are enclosing two pamphlets on the Taft-Hartley law which we think will answer your questions.

With all good wishes, I am

Sincerely yours,

Watson Washburn

Acting Secretary

WW:jp
Enclosures

September 2, 1948

Mr. J. H. Haynes
Lock Box #116
Clifton, West Virginia

Dear Mr. Haynes:

I received and read your letter of recent date with deep interest. I am pleased to note that you are uncompromisingly opposed to the notorious Taft-Hartley Law. I hope you reflect the judgment of all your fellow workers who reside in your community.

I noted the reply you received from Governor Dewey to a letter you sent him inquiring as to his attitude toward the Taft-Hartley Law.

The purpose of those who sponsored this law was to destroy labor unions, to make strong labor unions weak and to render them impotent so that employers would find it easier to exploit labor.

How a man who claims to be identified with labor and labor unions can support the Taft-Hartley Law is beyond my comprehension. You may rely upon the American Federation of Labor to render all service possible to bring about the repeal of the Taft-Hartley Law and the defeat of those candidates for Congress who voted for it regardless of party affiliation.

Very truly yours,

President,
American Federation of Labor

ds

CORNELIUS O. GRANAI
ATTORNEY AT LAW
107 N. MAIN STREET - PHONE 924
BARRE, VERMONT

September 7, 1948

A. F. of L. Building
Washington, D. C.

TO WHOM IT MAY CONCERN:

Will you kindly send me at your very earliest convenience any objections that your Union has against the Taft-Hartley Law.

I am the present member of the Vermont Assembly from this city and a candidate for re-election, and as a candidate I have the right to suggest to the Platform Committee any matters that I may consider pertinent to the general public. I am not satisfied with the workings of the Taft-Hartley Law and I would like to get from your office any suggestions that you might care to send me at your very earliest convenience.

The Republican State Committee convenes on the 28th of September and this matter will have to be in the hands of the Resolutions Committee at least a week ahead of that date.

C. O. Granai

COG:W

September 9, 1948

Mr. C. C. Granai
107 N. Main Street
Barre, Vermont

Dear Mr. Granai:

In compliance with the request contained in your letter of September 7, I am sending you information in regard to the Taft-Hartley Law, and, under separate cover, you will find several pamphlets published by the American Federation of Labor in regard to it and a publicity release of recent date calling for its repeal.

Trusting this is the information you desire, I am

Very truly yours,

Secretary-Treasurer
American Federation of Labor

WCH:em
oe1uff2

all T-H pamphlets +
Release from EC Meeting Aug. 24, 1948

Voting Record on Taft Hartley Labor Bill

as inserted in Molders and Foundry Workers' Journal

see file

CONGRESSMEN - in re voting records.

RESOLUTION

WHEREAS, The Taft-Hartley Law is intended to [illegible] the full rights of labor in the United States and has deprived labor of its just rights in collective bargaining; and

WHEREAS, The Democratic Party in its platform advocated the repeal of the Taft-Hartley Law in order to restore harmony to labor-management relations; and

WHEREAS, Organized Labor has demonstrated its full support of the Democratic Party by aiding in the election of the President and a substantial majority of Democratic candidates to the Senate and the House of Representatives; therefore be it

RESOLVED, That the Central Labor Council of Astoria, Oregon now calls on the 81st Congress to initiate legislation for the repeal of the Taft-Hartley Law when Congress convenes; and be it further

RESOLVED, That copies of this Resolution be spread on the minutes of the Central Labor Council of Astoria, Oregon; and that copies of this Resolution be mailed to President Harry S. Truman, Senator Wayne L. Morse, Senator Guy Cordon, Representatives Walter Norblad, Harris Ellsworth, Homer Angell and Lowell Stockman; and that copies of this Resolution be mailed to the American Federation of Labor, the Oregon State Federation of Labor and to all Central Labor Councils of the State of Oregon urging them to take similar action.

Adopted by unanimous Vote Nov. 8, 1948

RECEIVED NOV 17 1948

Sept. Letter
Truman

November 30, 1948

Mr. E. W. Stout
Richmond, Indiana

Dear Sir:

Receipt is acknowledged of your letter of November 8, and in reply to your question as to why organized labor favored President Truman, I wish to advise because of the liberal attitude President Truman has shown in the past and of the statements he made during his campaign. He has and does favor a minimum wage, extension of social security with increased benefits, adequate housing, taxes levied on those best able to pay and the repeal of the obnoxious anti-labor laws, particularly the Taft-Hartley Act.

In reply to your further question regarding the Taft-Hartley Act, I am sending, under separate cover, explanatory pamphlets regarding it.

Very truly yours,

President,
American Federation of Labor

WCHhk
oe1u #2

An Open Letter to
UNION MEMBERS

MR. UNION MEMBER:

You aren't learning the truth about the new Taft-Hartley Labor Bill.

You ought to insist on the facts.

You are being kidded by your own officials. They don't like the law. They are telling you that you ought not to like it. But they aren't telling you why they don't like it.

The top officers of your union don't like this new law for a very simple reason. It breaks up their dictatorship over YOU. It brings DEMOCRACY to the LABOR MOVEMENT.

It gives you and your friends, as MEMBERS of the unions, at least as much voice in union affairs as your OFFICERS.

That's democracy at work. YOU pay the bills. YOU are entitled to some say about what is done with your money.

The Taft-Hartley Law makes a new proposition about the labor problem. It says that labor unions and labor bosses are one thing, and the working people who make up the membership are something else.

THE LAW SAYS THAT SOMETIMES WORKING PEOPLE NEED PROTECTION FROM THEIR OWN UNIONS!

IT SAYS THAT IT'S WRONG FOR THE TOP OFFICERS TO HAVE ALL THE SAY, AND FOR YOU TO HAVE NO RIGHTS EXCEPT TO PAY THE FREIGHT!

THAT'S WHY THE LABOR BOSSES FEAR THE NEW LAW.

THAT'S WHY THEY ARE TRYING TO SIGN CONTRACTS OUTSIDE THE TAFT-HARTLEY ACT -- NOT TO PUT YOUR EMPLOYER BEHIND THE EIGHT-BALL -- BUT TO KEEP YOU THERE!

The big change in the Taft-Hartley Law is the new powers given to YOU as a member of a union, -- powers which you didn't have till that law was passed.

Here are some of your NEW powers, which you haven't had before, and won't ever have if the union bosses succeed in killing off the Taft-Hartley Act, or keeping it from being enforced.

YOU CAN'T BE FIRED BY YOUR UNION UNDER THE TAFT-HARTLEY ACT!

So long as you have paid your initiation fee, and pay your regular dues, your job is safe. The union can't have you laid off because they don't like your race, or your religion, or you personally.

If your employer insists on political parties or candidates you don't want to support, if you have to pay them, your dues have to go, and your union can't do anything about it!

If you do get laid off for such reasons, you can apply to the government for reinstatement, and make the union pay for the time lost.

STRONG-ARM STUFF BY UNIONS AGAINST MEMBERS IS OUT, UNDER THE TAFT-HARTLEY BILL!

If force is used in a union election, or against a man who doesn't want to go along with something the union officials have decided to do, or to keep a man from crossing a picket line to get to his job, that's an unfair labor practice under the Taft-Hartley Act; and the union can lose its bargaining rights with the employer, and its right of appeal to the Government.

Here are some other things about the Taft-Hartley Act which your labor bosses don't like -- but maybe you will!

You can now go straight to your employer, if you have a grievance which your union won't handle.

"Check-offs" can't be collected against you without your written permission.

Excessive and racketeering "initiation fees" are out.

Jurisdictional strikes and secondary boycotts, which have cost so much working time for union members, now are illegal.

"Feather-bedding" -- which means a loafer being put on the payroll while you or somebody else does the work -- has been outlawed.

If your union is sued, and a fine imposed, the money can only be taken from the union as a whole; it can't be enforced against you as an individual member.

BUT THAT'S NOT ALL!

Now you can make the officials of your union listen to you when you disagree with them.

Secret polls will be held on important strikes. They will be held when the question is raised of whether the union really represents a majority of the employees in the plant. They will be held before a new union can be set up and recognized in a plant.

You don't have to accept plant foremen into your union as regular members. If they want to unionize, they are to have a union of their own. The same is true of professional persons.

AND STILL THAT'S NOT ALL!

The new law tries to raise the window blinds so that you as a member can find out what the labor bosses are doing with the money they collect from you as dues and assessments.

Here are some of the things about which your union will now have to report, if it is to come within the Taft-Hartley plan of collective bargaining:

The names, titles and pay-plus-allowances of its three main officers, as well as anybody it hires for more than $5000 a year;

Who named these officers and agents -- and how;

The initiation fees and the regular dues;

The governing machinery of the union -- qualifications for stewardship, how elections are held, how meetings are called, how assessments are levied, how fines are imposed, who has the say on bargaining and contracts, who has the right to pay out the union's funds, and how members are expelled.

The union also must file a complete financial report, showing how much money it collected, from whom, and what it did with it -- and it has to see that you get a copy of this financial breakdown! These financial reports must be brought up to date each year.

HOW ABOUT THE COMMUNISTS?

Here is one of the big points. You remember how many unions fought a losing battle last year to rip the Communists out of key jobs?

Now, before a union can appeal under the Taft-Hartley machinery of collective bargaining, it must file an oath that no officer of the local or national is a Communist or a member of any other group which advocates the overthrow of the U. S. Government.

THINK THIS OVER!

You've been told the Taft-Hartley Act is a "slave bill," and that it crucifies the labor movement.

THE PEOPLE WHO ARE TELLING YOU THAT DON'T WANT YOU TO HAVE THE VARIOUS RIGHTS AND POWERS LISTED ABOVE!

They think they've got a hammerlock on you -- AND THEY DON'T WANT IT BROKEN.

The Taft-Hartley Act has been called a BILL OF RIGHTS FOR AMERICAN WORKING PEOPLE.

That's just what it is. As the law itself says, it seeks "to protect the rights of individual employees in their relations with labor organizations."

THERE'S NO ROOM FOR ARGUMENT!

The Law wants you to be free Americans -- the people who want the Taft-Hartley Act smashed down want you to be their slaves!

The Law speaks for itself. It's easy to get a copy. Read it for yourself. You'll find that every single point covered above, giving you new rights and powers, is down in black and white in the Law.

#4 ..

When you agree to a contract "outside" the Taft-Hartley Act, you are surrendering virtually all of those rights.

And when you join in a movement to smash the Taft-Hartley Act before it has had a fair trial, and to scare the Government out of trying to enforce it, you are just PUTTING ANOTHER MAN'S HANDCUFFS ON YOUR WRISTS!

Properly respected and enforced, the new Taft-Hartley Labor Law can be an EMANCIPATION PROCLAMATION for millions of American working people who have been SLAVES to UNION BOSSES!

BUCKS COUNTY REPUBLICAN COMMITTEE

Doylestown, Pennsylvania

A. HARRY CLAYTON
Chairman

MRS. CLARENCE J. BUCKMAN
Vice-Chairman

SOME CONSTITUTIONAL ASPECTS OF THE TAFT-HARTLEY ACT

POLITICAL CONTRIBUTIONS AND EXPENDITURES

Seldom, if ever, has the Congress of the United States enacted any legislation that so patently assaults the basic constitutional liberties of freedom of speech, freedom of press and freedom of assembly as does Section 304 of the Taft-Hartley Act.

It is made a crime "for any corporation . . ., or any labor organization to make a contribution or expenditure in connection with any election at which Presidential and Vice Presidential electors or a Senator or Representative in, or a Delegate or Resident Commissioner to Congress are to be voted for, or in connection with any primary election or political convention or caucus held to select candidates for any of the foregoing offices, or for any candidate, political committee, or other person to accept or receive any contribution prohibited by this section." The word "expenditure" constitutes the basic change made from the language of the Corrupt Practices Act. It means, and this meaning was made abundantly clear by Senator Taft and others, that a labor organization that has, for many years, published and distributed among its members a newspaper may not say anything in that newspaper about any federal political candidate on penalty of fine or imprisonment or both. It means, too, that should a labor organization make an expendi-

ture to hire a meeting place, it would be in violation of law if during the course of the meeting its officers advocated the support or defeat of any federal political candidate. Nothing could be more subversive of our most cherished American traditions and freedoms as embodied in the First Amendment to the Constitution.

INVOLUNTARY SERVITUDE

Though professing to eliminate some excesses and abuses on the part of some labor organizations engaged in unjustified boycotts, the actual language of Section 303 is such as to compel men to work against their will for the private profit of others even in situations where the workers would thereby be destroying their own standards and welfare. Take, for example, a manufacturer of clothing whose plant has been organized and whose employees are working under fair conditions with good wages. Should that manufacturer decide to contract out most of his work to persons who would employ non-union, cheap labor, thereby displacing many of his former employees and encouraging reduction of wages in the entire industry, his remaining employees could not, nevertheless, refuse to process the products of those non-union contractors. Such a refusal would expose them to money damages, to charges of unfair practices, and to immediate court injunction. In the similar situa-

tion contained in the case of Bedford Stone Co. v. Journeymen Stone Cutters' Association Mr. Justice Brandeis, together with Mr. Justice Holmes, stated:

> "Members of the Journeymen Stone Cutters' Association could not work anywhere on stone which had been cut at the quarries by 'men working in opposition' to it, without aiding and abetting the enemy. Observance by each member of the provision of their constitution which forbids such action was essential to his own self-protection. It was demanded of each by loyalty to the organization and to his fellows. If, on the undisputed facts of this case, refusal to work can be enjoined, Congress created by the Sherman Law and the Clayton Act an instrument for imposing restraints upon labor which reminds one of involuntary servitude."

While the foregoing quotation appears in the dissenting opinion, the reasoning and philosophy of that dissent has since been adopted by the majority of the Court.

The Thirteenth Amendment to the Constitution, prohibiting the imposition of involuntary servitude, would seem definitely to preserve to workers, in the competitive free-enterprise system which we enjoy, the right to take peaceful measures in self-defense against the challenge to their economic standards in the face of the competition of less expensive labor.

FREEDOM OF CONTRACT

Among the freedoms guaranteed by the Fifth Amendment is the freedom of contract. This, too, is a cornerstone of a democratic, free-enterprise system and has been so recognized by the Supreme Court of the United States. The Taft-Hartley Act in two respects invades that freedom. First, the Act completely prohibits certain forms of union-security agreements, such as maintenance of membership and the closed shop. This is true even though the contracting parties are anxious to have such an agreement and voluntarily enter into it. Indeed, even if all of the employees in a particular plant desire such an agreement and the employer insists upon it, nevertheless the parties may not freely enter into the agreement.

Second, Section 302 of the Act terminates many welfare funds that were lawfully established by voluntary agreement, and, additionally, prohibits the making of agreements for many forms of welfare funds in the future. It is not as though the Taft-Hartley Act prevented the abuse of closed-shop contracts, or the misapplication of welfare funds. On the contrary, closed-shop agreements that have been found entirely satisfactory by all parties involved over a period of many years may no longer be renewed, and welfare funds that have been created over the years and which were administered most honestly and efficiently are arbitrarily terminated. That being so, it is difficult to see any justification for disregarding a constitutional mandate respecting freedom of contract.

DUE PROCESS

The meaning of the constitutional guarantee of "due process" cannot be precisely defined. Generally speaking, however, due process means that no individual shall be unfairly deprived of his rights; that there be available to him adequate legal procedures to vindicate his rights, and that no restriction of his rights may be imposed arbitrarily or capriciously. Stated otherwise, "due process" is the constitutional phrase that conforms with our essential concepts of fair play and justice.

The Taft-Hartley law flouts those concepts in several respects. For example, it applies unequal penalties to workers and to employers for doing the same thing. Thus, the law forbids any strike or lockout without 60 days notice prior to the termination or modification of a collective agreement. Should any worker or group of workers violate that provision of the law, they immediately lose their status as employees and all their rights under the law. Should the employer, however, violate the same provision by engaging in a lockout, he suffers no similar consequence. Also, as to certain unfair labor practices on the part of employees or unions, the Labor Board must immediately apply for and obtain an injunction in the federal courts. The Labor Board is under no mandate to do the same with respect to any unfair practice that may be committed by any ~~unfair~~ employer.

Nothing is more consistent with our sense of justice and fair play, that is, "due process", than that the law apply equally to all persons. And yet, the foregoing shows a flagrant inequality of the application of the law as between employers and employees.

Another elementary principle of justice and due process is that no man should be deprived of any rights or suffer any adversity as a result of the action of another men over which he has no direct control. Sections 9(f), (g) and (h) of the Taft-Hartley Act violate that principle, too. It is there provided that no labor organization may seek or acquire any relief under the law unless its officers and the officers of "any national or international organization of which such labor organization is an affiliate" have filed certain detailed statements with the Department of Labor and have filed affidavits stating that they are not Communists. In other words, if an employer in Tulsa should violate the law and refuse to bargain with a local union, that union would have no right to get relief from the Board because some international official a thousand miles away arbitrarily refuses to sign an affidavit that he is not a Communist. The grotesqueness of the situation is readily illustrated. If all of the members of that local were Communists but their local and international officers were non-Communists, then the Communist members would have all the benefits and protections of the Act, but, if every member of the local and the international were fine American citizens, and one Communist happened

to attain an obscure international office, then all those patriotic citizens would be deprived of the benefits and protections of the Act. Such flagrant unfairness and injustice hardly squares with the due process requirement of the Constitution.

USURPATION OF JUDICIAL POWER

Article III of the Constitution provides in part that the judicial power of the United States "shall extend to all cases . . . arising under . . . the laws of the United States . . .; - to controversies . . . between citizens of different states . . ." In other words, the federal judicial power, as distinguished from the judicial power of the various state governments, is limited to cases involving substantive rights established by some federal law or to cases where ~~the substantive rights may be established by state law,~~ but the contest is between citizens of different states.

Unless these and the similar limitations imposed by Article III of the Constitution are carefully observed, then we shall find ourselves in the position whereby the state courts would be deprived of all their jurisdiction; and the result would be the destruction of our federal system of government, the essential characteristic of which is the co-existence of federal sovereignty alongside of state sovereignty.

Section 301 of the Taft-Hartley Act completely disregards Article III of the Constitution. Section 301 is not a federal law creating substantive rights; it deals only with procedural matters. It provides that suits for violation of collective agreements may be brought in any district court of the United States "without regard to the citizenship of the parties." We repeat, the rights which the plaintiff would seek to enforce in such a suit are not rights created by any federal law but merely rights obtained through private contract. The clear language of the Constitution above quoted shows that in such a controversy the federal courts may assume jurisdiction only where the controversy is between citizens of different states. Section 301 is, therefore, directly contradictory to the Constitution in that it permits such a suit to be brought even though the controversy be between citizens of the same state.

"THE TRUTH ABOUT THE TAFT-HARTLEY ACT"

A radio forum financed by the International Brotherhood of Boilermakers, Iron Ship Builders and Helpers of America over the network of the American Broadcasting Company, originating in Philadelphia, Penn., Sept. 13, 1948, at 8:00 p.m. Participating in this forum:

HON. MAURICE C. TOBIN, Secretary of Labor
CLIF LANGSDALE, Chairman, Labor Section,
American Bar Association
CHAS. J. MacGOWAN, International President

The vicious features of the Taft-Hartley Act will be thoroughly explained in this broadcast which you cannot afford to miss.

The following broadcast times in each of the zones are the present local times regardless of whether the community is on daylight or standard time:

Eastern	**8:00 p.m.—8:30 p.m.**	**Central**	**7:00 p.m.—7:30 p.m.**
Mountain	**7:00 p.m.—7:30 p.m.**	**Pacific**	**7:30 p.m.—8:00 p.m.**

Consult your local newspapers or the local station of the American Broadcasting Company for the exact time of the broadcast, which follows the Lone Ranger program.

CHARLES J. MACGOWAN,
INTERNATIONAL PRESIDENT

WM. J. BUCKLEY, INT'L. SECRETARY-TREASURER

L. A. FREEMAN, EDITOR-MANAGER OF
"THE BOILERMAKERS JOURNAL"

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OFFICE OF
INTERNATIONAL PRESIDENT
522 BROTHERHOOD BLDG.

KANSAS CITY 11, KANSAS

August 31, 1948

RECEIVED
SEP 7 - 1948

To all International Unions, State Federations of Labor, Building Trades Councils, Metal Trades Councils, Federal Labor Unions, Central Labor Unions and the Labor Press.

Re: "THE TRUTH ABOUT THE TAFT-HARTLEY ACT"

Dear Sirs and Brothers:

In a sincere effort to bring to the working people of the Nation the vicious and insidious provisions of the Taft-Hartley Act, the International Brotherhood of Boilermakers, Iron Ship Builders and Helpers of America have leased the facilities of the American Broadcasting Company for thirty minutes on Monday evening September 13, 1948. This program will originate in Philadelphia, Pa., at 8:00 p.m.

The following broadcast times in each of the zones are the present local times regardless of whether the community is on daylight or standard time:

Eastern	**8:00 p.m.-8:30 p.m.**	**Central**	**7:00 p.m.-7:30 p.m.**
Mountain	**7:00 p.m.-7:30 p.m.**	**Pacific**	**7:30 p.m.-8:00 p.m.**

All interested parties should consult their local newspapers or local station outlet of the American Broadcasting Company to ascertain the time of the broadcast in that area.

Participating in this radio forum will be:

HONORABLE MAURICE C. TOBIN, Secretary of Labor

CLIF LANGSDALE, Chairman, Labor Section, American Bar Association

CHAS. J. MacGOWAN, International President of the International Brotherhood of Boilermakers, Iron Ship Builders and Helpers of America.

Will you please do everything in your power to notify your membership of this vital broadcast so that we can obtain the greatest possible coverage. Your cooperation in this matter will be deeply appreciated.

Yours fraternally,

Chas J MacGowan
International President

CJM:W